OVER THE COUNTER

ORIGINAL

IN THE COURT OF CRIMINAL APPEALS OF TENNESSEE
AT KNOXVILLE

STATE OF TENNESSEE	)	
	)	
APPELLANT	)	**KNOX COUNTY CRIMINAL**
	)	
V.	)	**C.C.A. NO.** E2013-02309-CCA-R9-CD
	)	
CORRIN K. REYNOLDS	)	
	)	
APPELLEE	)	

FILED
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Clerk of the Court
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ON APPEAL FROM THE JUDGMENT OF THE
KNOX COUNTY CRIMINAL COURT PURSUANT TO TENN. R. APP. P. 9(a)

BRIEF OF THE APPELLEE CORRIN K. REYNOLDS

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ORAL ARGUMENT REQUESTED

TABLE OF CONTENTS

Table of Authorities ii

Introduction 1

Issue Presented for Review 2

Statement of the Issues 3

Statement of the Case 4

Statement of the Facts 5

Argument 9

I. **THE OFFICER LACKED RESONABLE GROUNDS UNDER THE IMPLIED CONSENT STATUTE TO REQUEST A BLOOD DRAW FROM CORRIN REYNOLDS.** 9

II. **THE STATE FAILED TO PROVE BY A PREPONDERANCE OF EVIDENCE THAT CORRIN REYNOLDS GAVE CONSENT TO DRAW HER BLOOD** 12

III. **WAS THE DEFENDANT/APPELLEE IN A MEDICAL CONDITION RENDERING HER INCAPABLE OF REFUSAL PURSUANT TO THE IMPLIED CONSENT STATUTE T.C. A. § 55-10-406 (d)(2), THUS GIVING HER THE RIGHT TO LATER OBJECT TO A BLOOD DRAW TAKEN WHILE INCAPACITATED.** 16

IV. **THE MANDATORY BLOOD DRAW PROVISIONS OF T.C.A. § 55-10-406 ARE UNCONSTITUTIONAL** 17

V. **IS THE IMPLIED CONSENT STATUTE UNCONSTITUTIONAL?.** 18

VI. **EXIGENT CIRCUMSTANCES?** 21

Conclusion 23

Certificate of Service 24

Addendum 25

TABLE OF CITATIONS AND AUTHORITIES

Cases Cited: ***Page***

Air Pollution Variance Bd. v. Western Alfalfa Corp., 416 U.S. 861, 865 (U.S. 1974) 20

Dolan v. City of Tigard, 512 U.S. 374, 391 (U.S. 1994) 18

Frost v. Railroad Commission, 271 U.S. 583, 593-94 (1926) 18

Koontz v. St. Johns River Water Mgmt. Dist., 133 S. Ct. 2586, 2589 (U.S. 2013) 18

Liming v. State, 417 S.W.2d 769 (Tenn. 1967) 15

Mapp v. Ohio, 367 U.S. 643, 655 (U.S. 1961) 19

Marshall v. Barlow's, Inc., 436 U.S. 307, 325 (U.S. 1978) 18, 20

Missouri v. McNeely, 133 S. Ct. 1552 (2013) 17, 19, 21

New York v. Burger, 482 U.S. 691, 703 (U.S. 1987) 20

Nollan v. California Coastal Commission, 483 U.S. 825 (U.S. 1987) 18

State v. Blackwood, 713 S.W.2d 677, 679 (Tenn. Crim. App. 1986) 19

State v. Clark, 844 S.W.2d 597 (Tenn. 1992) 14

State v. Knott, 2001 Tenn. Crim. App, LEXIS 558 15

State v. Mills, 2009 (Tenn. Crim. App. LEXIS 337) 21

State v. Murphy, 953 S.W.2d. 200, (Tenn. 1997) 9

State v Sides, 2001 Tenn. Crim. App. LEXIS 364 10

U.S. v. Worley, 193 F.3d 380 (C.A. 6th Tenn. 1999) 14

Weem v. State, 2014 Tex. App. LEXIS 5109 (C.A. 4th Dist May 14, 2014) 17

Western Union Tel. Co. v. Foster, 247 U.S. 105 (U.S. 1918) 18

Winston v. Lee, 470 U. S. 753, 760, 105 S. Ct. 1611, 84 L. Ed. 2d 662 (1985) 19

Tennessee Code Annotated § 55-10-406 .....9, 16, 17, 18, 20

Tennessee Code Annotated § 55-10-407 19

Tennessee Constitution, Article I, § 7 19

United States Constitution, Fourth Amendment 17, 18, 19, 20, 21

INTRODUCTION

MAY IT PLEASE THE COURT:

This case is an appeal by the State of Tennessee pursuant to Rule 9(a) of the Tennessee Rules of Appellate Procedure from a suppression ruling by the Honorable Steven Sword, Judge of the Criminal Court for Knox County, Division I. Judge Sword held that the blood evidence taken from the defendant should be suppressed and could not be used as evidence against the defendant. The State requested a Rule 9(a) Appeal, which was granted by Judge Sword and this Honorable Court.

ISSUE PRESENTED FOR REVIEW

The trial court correctly suppressed from admission into evidence the blood test of Corrin Reynolds. The trial court found that the officer did not have probable cause to request a blood draw pursuant to the Implied Consent Law, and the evidence in this record does not preponderate against that finding. The trial court also found the State had failed in its burden of proof to establish consent for the blood draw and the evidence in this record does not preponderate against the finding.

STATEMENT OF ISSUES

I. THE OFFICER LACKED RESONABLE GROUNDS UNDER THE IMPLIED CONSENT STATUTE TO REQUEST A BLOOD DRAW FROM CORRIN REYNOLDS.

II. THE STATE FAILED TO PROVE BY A PREPONDERANCE OF EVIDENCE THAT CORRIN REYNOLDS GAVE CONSENT TO DRAW HER BLOOD.

III. WAS THE DEFENDANT/APPELLEE IN A MEDICAL CONDITION RENDERING HER INCAPABLE OF REFUSAL PURSUANT TO THE IMPLIED CONSENT STATUTE T.C. A. § 55-10-406 (d)(2), THUS GIVING HER THE RIGHT TO LATER OBJECT TO A BLOOD DRAW TAKEN WHILE INCAPACITATED

IV. THE MANDATORY BLOOD DRAW PROVISIONS OF T.C.A. § 55-10-406 ARE UNCONSTITUTIONAL.

V. IS THE IMPLIED CONSENT STATUTE UNCONSTITUTIONAL?

VI. EXIGENT CIRCUMSTANCES?

STATEMENT OF THE CASE

The defendant/appellee adopts the statement of the case as presented by the Appellant, State of Tennessee.

STATEMENT OF THE FACTS

Your defendant/appellee was involved in a one (1) car traffic accident on October 29, 2011, at approximately 20:42 hours (8:42 p.m.). The vehicle involved was severely damaged and the defendant was extricated by emergency personnel. The extrication took approximately twenty (20) minutes. Rural Metro Emergency Medical Staff (EMS) arrived at 20:51 and indicated that Ms. Reynolds had suffered a head injury, and that her right pupil was noted blown non-reactive, patient stated she could not see out of her right eye, also screaming that she was deaf and holding a hearing aide in her hand. [Technical Record (T.R.) I, pp. 19-26, EMS Report]. UT Life Star arrived at 20:53 and assumed the care of Ms. Reynolds. The report notes that her consent to be transported was implied due to her altered mental status. The report indicates that barriers to her care involved a hearing impairment, and that the EMS states that patient was holding her hearing aide, but the Life Star Staff was unable to find it and it was not found in flight. Life Star departed the scene at 21:22 and gave Ms. Reynolds morphine at 21:28 and versed at 21:29. Life Star arrived at the UT Hospital Emergency Room at 21:36. (T.R. I, pp. 27-32, Life Star Report)

The UT Emergency Room staff assumed control of Ms. Reynolds medical treatment at 21:36, and notes indicate that the patient is deaf and unable to hear verbal commands. Morphine was given at 21:45, versed 21:45, versed 21:50, and versed 22:17. Blood was drawn from the defendant at the request of Officer Strzelecki at 22:38. (T.R. I, pp. 33-39, Emergency Room Records)

At 21:04 Officer Strzelecki received a page as a member of a crash reconstruction team with the Knox County Sheriff's Department, concerning the collision. (T. IV, p. 50) As a result

of the page he proceeded to the UT Emergency Room and arrived about thirty (30) minutes later. He had not received any information that the accident was caused by alcohol or drugs. He had been told that two (2) people had died in the crash. He testified that because of the deaths the blood draw would have been mandatory. (T. II, pp. 2-3) He also testified that upon arriving at the emergency room he had a meeting with Ms. Reynolds at approximately fifteen (15) minutes prior to the blood draw, which would have been around 22:23. At the time of his conversation Ms. Reynolds had received six (6) doses of medication: morphine 21:28, versed 21:29, morphine 21:45, versed 21:45, versed 21:50 and versed 22:17. (T. IV, p. 52) Officer Strzelecki testified on two (2) different occasions as to the meeting with Ms. Reynolds, first at a hearing on April 5, 2013 (T. II), and second on August 30, 2013 (T. IV). His testimony differed on these two (2) occasions, and the trial court adopted and gave credit to his testimony at the last hearing on August 30, 2013. At this hearing Officer Strzelecki indicated that he asked Ms. Reynolds for a blood draw and she acknowledged, "do whatever you have to do". He was unable to recall any further conversation with her other than that one (1) statement. (T. IV, p. 46) Officer Strzelecki testified he did not know Ms. Reynolds was hearing impaired (T. IV, p. 46). He also said he did not read her the Implied Consent form, and advise her that she could refuse the request. (T. II, p.15)

As part of the record counsel for Ms. Reynolds filed reports from Dr. Grady Arnold, a hearing specialist, whose records indicated that on August 25, 2010, and September 14, 2012, he saw and examined Ms. Reynolds for possible hearing impairment. Audiograms were performed and these showed that Ms. Reynolds does suffer a bilateral moderately severe to profound sensorineural hearing loss. His recommendation was the use of hearing aids. (T.R. I, pp 69-75)

Dr. John B. Robertson testified at the August 30, 2013, suppression hearing, that the medications given to Ms. Reynolds as set out above were heavy doses of medications and were cumulative, and would have in his opinion, caused Ms. Reynolds to be incapable of giving an intelligent and knowing consent to a blood draw. (T. IV, pp. 40-41)

Q: Doctor, based on your review of these medical records and your knowledge of these medications, are you of the opinion that at any time during from the time of the accident until the blood was actually drawn, that Ms. Reynolds would have been capable to give a voluntary, knowing, and intelligent and informed consent to have her blood drawn?
A: I don't think she could have.
Q: And could you tell the Court why?
A: Well, first you've got the head injury even before she has any medication, and then to the extent that she is no longer dazed and confused by such a traumatic physical injuries and loss of consciousness related to the head injury. Then she's got the psychological trauma of looking around and seeing people, bodies, dead and all the ambulance and the Life Star coming in picking her up. So you got all of this psychological trauma compounded on top of that, and then on the way, you've got these medications within minutes of getting—as soon as they can get an IV in, they're giving her something, and so they get the IV in, they give her some medicine to calm her down, to control the pain, and then she hits the ER, and then she's not calm enough. So—she's combative, and so they've got to give her some more medication to calm her down, and each of these times they're not giving it for the heck of it, but she's getting—levels of agitation starting to go back up. The medicine's not wearing off. It's just that she requires quite a bit of medication here, and this is—this is enough to put someone down. (T. IV, pp. 18-19)

Dr. Robertson also testified the medications given to Ms. Reynolds were "heavy doses" and cumulative over time. (T. IV, pp. 40-41) He describes the use of morphine for pain relief and versed (midazolam), to calm the patient, make her compliant and to cause amnesia. (T. IV, p. 17, p. 37) He further testified on cross-examination that:

A: A person that received the degree of midazolam (versed) and morphine over the course of an hour should not be able to give informed consent. They would be complying … you could ask them to do anything, and they would do it. Their judgment and reasoning, their heart, cardio functioning is just they're offline. (T. IV, p. 38)

Q: Is there a difference between being rational and being complaint?

A: Yes

Q: Compliant means to submit to a command?

A: Yes

Q: Now; the officer testified that he did speak with her, asked for a blood draw, and her response was "do whatever you have to do." The State said she agreed to a blood draw, but does that language "do whatever you have to do" does that indicate to you that she's being complaint and not rational?

A: Yes (T. IV, pp. 39-40)

ARGUMENT

Because the evidence in this record does not preponderate against the findings of the Honorable Steven W. Sword, this Honorable Court should uphold his ruling to suppress the blood evidence in this case.

I. THE OFFICER LACKED RESONABLE GROUNDS UNDER THE IMPLIED CONSENT STATUTE TO REQUEST A BLOOD DRAW FROM CORRIN REYNOLDS.

As Judge Sword states in his finding of facts and conclusions of law filed September 4, 2013, (T.R. I, pp. 91-99), the implied consent statute, T.C.A. § 55-10-406, requires an officer to possess reasonable grounds (i.e. probable cause citations on p. 94), before request for a blood draw can be made.

The trial judge ruled that Officer Strzelecki, lacked probable cause to request a blood sample under the implied consent law. The trail judge relied on these facts:

1. Officer Strzelecki only observed the defendant for a few minutes in the emergency room. (T.R. I, p. 95)

2. No evidence was presented to indicate that the nature of the accident gave him reason to believe the driver was under the influence. (T.R. I, p. 95)

3. The defendant was lying on a gurney when the officer spoke with her. He was unable to determine if she was unsteady on her feet. (T.R. I, p. 95)

4. He performed a horizontal gaze nystagmus test on the defendant, which indicated to him that she was impaired. No other field sobriety tests were performed. (T.R. I, p. 95) [Note: that defense counsel objected to the evidence of the nystagmus test relying on State v. Murphy, 953 S.W.2d. 200, (Tenn. 1997), which requires the officer to qualify as an expert capable of

explaining the science underlying the test. Counsel would argue the Trial Judge should not have considered the officer's testimony concerning his conclusions from the test. The officer testified he could not explain the science. (T. II, p. 60) Also, the officer testified the nystagmus could be the result of medications given to her by medical staff. (T. II, pp. 7-8)]

5. The officer did notice an odor of alcohol on the defendant. He did not testify whether or not her eyes were bloodshot or if her speech was slurred. (T.R. I, p. 95) [Note: Smell of alcohol has been held insufficient to establish probable cause. State v Sides, 2001 Tenn. Crim. App. LEXIS 364]

6. On his way to the hospital Officer Strzelecki called the Assistant District Attorney to discuss the situation before he arrived at the hospital. She instructed him to ask the driver for consent to take a blood sample. This occurred before the officer ever observed the defendant. (T.R. I, p. 95)

7. He testified during the first hearing that he spoke with the passenger and asked for consent to take a blood sample from him before he spoke to the defendant. (T.R. I, p. 95).

8. The officer testified that since there were fatalities the blood draw "would have been mandatory under our investigation". (T., p. 95)

9. If the State believed the officer had probable cause, it is likely she would have been charged much sooner than waiting for a toxicology report. (T., p. 95)

10. As stated in the previous ruling, the Court finds the officer's intent was to receive actual consent for a blood draw from the defendant rather than relying on implied consent. The circumstances of this case indicate that the officer did not have reasonable grounds to believe the

defendant was driving under the influence. Therefore, the State cannot rely on implied consent to justify the search and seizure of the defendant's blood. (T.R. I, pp. 95-96)

The trial judge correctly applied the law to these facts, which are not overcome by a preponderance of evidence, and therefore, his ruling should legally stand.

II. THE STATE FAILED TO PROVE BY A PREPONDERANCE OF EVIDENCE THAT CORRIN REYNOLDS GAVE CONSENT TO DRAW HER BLOOD.

The trial court correctly states the law in regards to consent. The State has the burden by showing by a preponderance of the evidence that the consent was freely and voluntarily given and must be unequivocal, specific, intelligently given, and uncontaminated by duress or coercion. (T.R. I, p. 96)

The trial court held the State failed in its burden and this finding is not shown to be against the preponderance of evidence in this case, and therefore the holding should stand.

The facts found by the Court to support this conclusion are as follows:

1. Officer Strzelecki testified during both hearings that he asked the defendant if she would consent to give a blood sample, and that she gave consent with the statement "do whatever you have to do." (T.R. I, p. 96)

2. The Court must determine from the evidence presented if the defendant was conscious of what was being asked of her, and gave an intelligent consent to the specific act of having her blood drawn for the purpose of testing her alcohol and/or blood levels. (T.R. I, p. 96)

3. The defendant did present testimony of Dr. Robertson. His testimony is useful for the limited purpose of establishing that the medications administered to the defendant [morphine and midzaolam (versed)] are designed to have a calming effect on the patient and make them more compliant. The medical records indicate that the defendant had been combative before the medication, and subsequently calmed down and appeared to be sleeping. It is reasonable from these facts to conclude that the medication was having some effect on the defendant. However, it is not clear to what extent the medications affected her free will and conscious thought. (T.R. I, p. 97)

4. There was a material difference between the officer's testimony between the first and second suppression hearings. (T.R. I, p. 97)

This second description of the interaction between Officer Strzelecki and the defendant paints a different picture than the one initially presented to the Court at the first hearing. The Court previously believed that the defendant had a verbal interchange with the officer where she verbally answered multiple questions. The added responses from the defendant concerning the consumption of alcohol, and who was driving gave the phrase, "do whatever you have to do", more credence as an intelligent and knowing response to the request for blood. When asked about what was specifically said by the defendant, the officer (during the 2nd hearing) acknowledged that the defendant only spoke one (1) sentence during the entire brief conversation. The mere fact that the defendant nonverbally acknowledge that she was the driver gives the Court much less confidence that she understood what was being asked of her when a blood sample was requested. (T.R. I, p. 98)

5. The officer did not explain to the defendant that she could refuse to consent to the blood draw. Nor did he advise her that refusal to submit could result in a suspension of her driver's license although, not required by law in order for the consent to be valid, such advice would have gone a long way in ensuring that the consent was given from a free mind and rational intellect in this case. (T.R. I, p. 98)

6. The more specific questions asked by the Court during the second hearing, along with the additional proof from Dr. Robertson, present a more complete understanding of his interaction with the defendant and her ability to comprehend this interaction. (T.R. I, p. 98)

7. Here we have a defendant in a hospital after a severe car accident. She has been given multiple doses of medications to calm her down and make her more compliant with demands and requests. She has some degree of hearing impairment that interferes with her ability to communicate. She has a brief interaction with a police officer who asks her to follow his pen with her eyes during the horizontal nystagmus test. He then asks her if she was the driver. She gives a nonverbal cue indicating in the affirmative. The officer asks her for a sample of her blood, which she responds, "do whatever you have to do." Taking all those factors into account the Court now finds that the State has failed to prove by a preponderance of the evidence that this statement was a specific and intelligently given consent to have law enforcement take a sample of her blood for testing to determine possible impairment. (T.R. I, p. 99)

8. It is just as likely that the defendant was complying with any request made of her due to the medication. (T.R. I, p. 99)

9. Her one (1) sentence response of acquiescence is insufficient to prove she was specifically consenting to a search of her blood.

The evidence does not preponderate against the Court's ruling and thus the ruling should be upheld. In U.S. v. Worley, 193 F.3d 380 (C.A. 6th Tenn. 1999), during a police/citizen encounter the defendant was asked if officer could look into a bag and defendant responded "you've got the badge, I guess you can", was held not to be valid consent. In State v. Clark, 844 S.W.2d 597 (Tenn. 1992) our Supreme Court held:

> Nor has the State satisfied its burden of proving that Mr. Clark freely and voluntarily consented to the detective's entry. When Mr. Clark answered the door the detectives merely identified themselves and entered the apartment. Contrary to the State's ascension, Mr. Clark's action in stepping back from the door was not an invitation for the officers to enter. Consent to enter and search a home will not be lightly interred, nor found by mere acquiescence to unlawful authority. (p. 598)

And in Liming v. State, 417 S.W.2d 769 (Tenn. 1967), an officer declared his intent to search the car of the defendant to which the defendant replied, "there it is." The Court states that "in order for consent to be voluntary it must be unequivocal, specific, and intelligently given and is not likely to be inferred" (p. 771), and held the consent invalid.

Finally, in State v. Knott, 2001 Tenn. Crim. App, LEXIS 558, an officer ask to search the defendant's car and after being told that the officer would call for a K-9 the defendant consented. The consent was held involuntary and the Court in reviewing factors to consider in evaluating voluntariness of the consent specifically considers:

- Defendant's awareness of right to refuse
- Defendant's age, education, and intelligence
- Whether defendant understands her constitutional rights
- Previous experience with police
- Whether the accused was injured, intoxicated or in ill health

Clearly these weigh in favor of Judge Sword's ruling.

Therefore, it is respectfully submitted that the evidence in this case does not preponderate against Judge Sword's conclusion that the State failed to carry it's burden of proof to establish valid consent.

III. WAS DEFENDANT/ APPELLEE IN A MEDICAL CONDITION RENDERING HER INCAPABLE OF REFUSAL PURSUANT TO THE IMPLIED CONSENT STATUTE T.C. A. § 55-10-406(d)(2), THUS GIVING HER THE RIGHT TO LATER OBJECT TO A BLOOD DRAW TAKEN WHILE INCAPACITATED.

If this Honorable Court should find the Trial Court was incorrect in holding the officer lacked reasonable grounds to request a blood draw, (which is certainly not conceded by defense counsel) defendant would argue that T.C.A. § 55-10-406(d)(2) should still cause the blood evidence to be suppressed.

> Any person who is unconscious as a result of an accident or is otherwise in a condition rendering that person incapable of refusal, shall be subjected to the test or tests as provided in this section. The results therefore shall not be used in evidence against that person in any court or before any regulatory body without the consent of the person so tested. T.C.A. § 55-10-406 (d)(2)

As previously set forth in Argument II, defendant contends the Trail Court correctly found the defendant was incapable of legal consent, and it would therefore stand to reason that she would be incapable of legal refusal under this code section. It is clear the defendant was in a condition rendering her incapable of knowingly, voluntarily, and intelligently giving refusal due to her severe injuries, medications, and hearing impairment. Defense would argue if she is incapable of legal consent then she is incapable of legal refusal.

IV. THE MANDATORY BLOOD DRAW PROVISIONS OF T.C.A. § 55-10-406 ARE UNCONSTITUTIONAL.

The mandatory blood draw provisions found in T.C.A.§ 55-10-406(d)(5) are deemed unconstitutional in the U.S. Supreme Court case of Missouri v. McNeely, 133 S. Ct. 1552 (2013). In the State's brief it is argued that the mandatory blood draw provisions are a legal basis for the blood test in this case. However, that argument was abandoned by the State at trial level based on the rendering of McNeely. The trial judge was not presented with this argument, and thus made no ruling. Defense believes McNeely invalidates the State's position.

In Weem v. State, 2014 Tex. App. LEXIS 5109 (C.A. 4th Dist May 14, 2014), the Court reviewed the Texas implied consent statute in light of the McNeely decision and held "that the implied consent and mandatory blood draw statutory scheme found in the Texas code are not exceptions to the warrant requirement under the Fourth Amendment. To be authorized, the State's warrantless blood draw must be based on a well-recognized exception to the Fourth Amendment." (p.6)

At the trial level in the case now before this Court the State conceded the mandatory blood draw provisions to be invalid and proceeded on a theory that the defendant gave consent, which is an exception to the warrant requirement of the Fourth Amendment. The State now argues contra to it's prior position.

V. IS THE IMPLIED CONSENT STATUTE UNCONSTITUTIONAL?

Whether Tennessee's Implied Consent Law violates the Constitution because it imposes an unconstitutional condition by requiring drivers to submit to warrantless searches and seizures.

The Supreme Court has a long history of prohibiting States from conditioning the grant of a privilege on the relinquishment of a constitutional right. See Koontz v. St. Johns River Water Mgmt. Dist., 133 S. Ct. 2586, 2589 (U.S. 2013); Dolan v. City of Tigard, 512 U.S. 374, 391 (U.S. 1994); Nollan v. California Coastal Commission, 483 U.S. 825 (U.S. 1987); Marshall v. Barlow's, Inc., 436 U.S. 307, 325 (U.S. 1978); Frost v. Railroad Commission, 271 U.S. 583, 593-94 (1926); Western Union Tel. Co. v. Foster, 247 U.S. 105 (U.S. 1918). This constitutional conditions doctrine states that:

> As a general rule, the state, having power to deny a privilege altogether, may grant it upon such conditions as it sees fit to impose. But the power of the state in that respect is not unlimited, and one of the limitations is that it may not impose conditions which require the relinquishment of constitutional rights. If the state may compel the surrender of one constitutional right as a condition in its favor, it may, in like manner, compel a surrender of all. It is inconceivable that guaranties embedded in the Constitution of the United States may thus be manipulated out of existence. Frost v. Railroad Commission, 271 U.S. 583, 593-94 (1926).

In Frost the Supreme Court declared a law unconstitutional that imposed conditions on the use of California's public highways for private business. Id. It is important to note that this doctrine encompasses the "guaranties embedded in the Constitution", which includes the Fourth Amendment's protection against unreasonable searches and seizures. Id; U.S. Const. amend. IV.

In Tennessee the Implied Consent Statute declares that, "any person who drives a motor vehicle in this state is deemed to have given consent to a test or tests for the purpose of determining the alcoholic content of that person's blood." T.C.A. § 55-10-406. It further provides that this test may only be conducted if an officer has "reasonable grounds to believe the

person was driving while under the influence of [an intoxicant]." Id. When a person refuses to consent to a request for a blood draw that person is subject to suspension for up to five (5) years. T.C.A. § 55-10-407.

The United States and Tennessee Constitutions protect against unreasonable searches and seizures. U.S. Const. Amend. IV; Tenn. Const. Art. I, § 7. The U.S. constitution declares that "the right of the people to be secure . . . against unreasonable searches and seizures, shall not be violated, and no warrants shall issue, but upon probable cause." U.S. Const. Amend. IV. The Tennessee Constitution provides that "people shall be secure in their persons, houses, and papers and possessions, from unreasonable searches and seizures." Tenn. Const. Art. I, § 7. Further, the Fourth Amendment protections apply in State Court proceedings. Mapp v. Ohio, 367 U.S. 643, 655 (U.S. 1961).

Taking a sample of a person's blood constitutes a search under the Fourth Amendment. Missouri v. McNeely, 133 S.Ct. 1552, 1558 (U.S. 2013); State v. Blackwood, 713 S.W.2d 677, 679 (Tenn. Crim. App. 1986). Indeed, "such an invasion of bodily integrity implicates an individual's 'most personal and deep-rooted expectations of privacy'" Id. (Quoting Winston v. Lee, 470 U. S. 753, 760, 105 S. Ct. 1611, 84 L. Ed. 2d 662 (1985).

In Missouri v. McNeely, the Supreme Court has shown that the Fourth Amendment protects drivers from blood samples being taken without the authority of a neutral magistrate, unless it is unreasonable to obtain a warrant under the circumstances. Id. Therefore, the court rejected a rule that would permit warrantless blood draws in all drunk driving investigations under the exigent circumstances doctrine. Id at 1568. A citizen involved under investigation for driving while intoxicated is protected by the Fourth Amendment against unreasonable searches.

See Id. In contravention of this principle the State of Tennessee currently requires all drivers to consent to a warrantless blood draw in order to drive in Tennessee. T.C.A. § 55-10-406.

The Supreme Court has invalidated a state statute that required businesses to permit inspections for violations of the Occupational Safety and Health Act (OSHA). Compare Marshall v. Barlow's, Inc., 436 U.S. 307, 325 (U.S. 1978) (holding that a statute was unconstitutional where it permitted the government to search businesses without a warrant) with New York v. Burger, 482 U.S. 691, 703 (U.S. 1987) (holding that a New York statute that required junk yards to submit to warrantless inspections was valid where the searches themselves fit within the closely regulated businesses exception to the warrant requirement) and Air Pollution Variance Bd. v. Western Alfalfa Corp., 416 U.S. 861, 865 (U.S. 1974) (holding that a Colorado statute permitting warrantless pollution analysis of the plume from a smoke stack was valid where the search fell with within the open fields exception to the warrant requirement).

The Implied Consent Law forces a citizen to forfeit the Fourth Amendment protections of requiring an officer to obtain a warrant or face suspension of a license. T.C.A. § 55-10-406. Therefore this manner of presenting the request for a blood sample is unlawful. Implied consent is not a legal exception for a warrantless search.

VI. EXIGENT CIRCUMSTANCES?

The State argues the blood draw if suppressed for all other reasons should be admitted under the "exigent circumstances" exception to a search warrant. This position was not argued in the trial court. Judge Sword was not presented the issue with facts or law. Knox County has twenty-four (24) hour access to obtain a search warrant. Magistrates are available twenty-four (24) hours per day seven (7) days per week. Prosecuting attorneys are on call. A search warrant can be sought within a matter of minutes. Officer Strzelecki was not the only officer involved in this investigation. Officers were at the crash site within minutes, and a prosecuting attorney was available, and in contact with those charged with the investigation. The State has the burden of proof yet nothing was offered at the trial level, and no argument legally advanced. Law enforcement cannot create its own exigent circumstances in order to circumvent the warrant requirement. State v. Mills, 2009 (Tenn. Crim. App. LEXIS 337) Whether a warrantless blood draw test is reasonable must be determined case by case based on the totality of the circumstances. McNeely, 133 S.Ct. 1563. This is an issue that should have been raised and litigated in the trial court, but was not. In McNeely the Court held the fact that alcohol dissipates over time in the human body does not alone constitute exigent circumstances justifying taking a blood sample without a warrant. The Court held in drunk driving investigations when officers can reasonably obtain a warrant for a blood draw the Fourth Amendment mandates they do so. (133 S.Ct. 1552, 1561, U.S. 2013)

In this case there were multiple officers involved in the investigation and a search warrant could easily have been obtained upon a showing of probable cause. The burden is on the State to

prove by a preponderance of evidence that exigent circumstances existed, but failed to offer any proof or argument on this issue at the trial level.

CONCLUSION

Defendant/Appellee respectfully requests that this Honorable Court uphold the suppression of the blood test to be offered by the State in this prosecution.

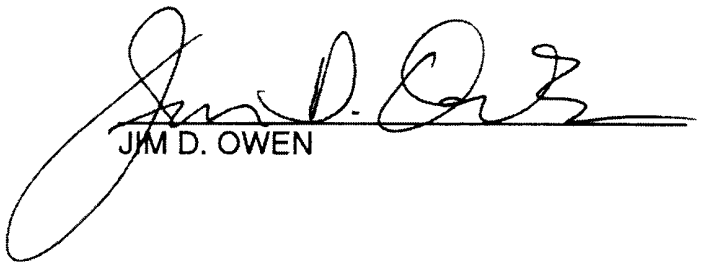
RESPECTFULLY SUBMITTED,

MARK E. STEPHENS
PUBLIC DEFENDER, SIXTH JUDICIAL DISTRICT

BY: _____
JIM D. OWEN, BPR# 000624
ASSISTANT DISTRICT PUBLIC DEFENDER
1101 Liberty Street
Knoxville, TN 37919
Phone: (865) 594-6120
(This signature was electronically generated pursuant to Tenn. Code Ann. § 16-1-115.)

CERTIFICATE OF SERVICE

I, Jim D. Owen, hereby certify that a true and exact copy of the foregoing has been forwarded by first-class mail, postage prepaid, to the State Attorney General's Office, Criminal Justice Division, P.O. Box 20207, Nashville, Tennessee 37202, this the 3rd day of June, 2014.



JIM D. OWEN

ADDENDUM

State v. Knott, 2001 Tenn. Crim. App, LEXIS 558

State v. Mills, 2009 (Tenn. Crim. App. LEXIS 337)

State v Sides, 2001 Tenn. Crim. App. LEXIS 364

Weem v. State, 2014 Tex. App. LEXIS 5109 (C.A. 4th Dist May 14, 2014)





Caution
As of: Aug 19, 2013

STATE OF TENNESSEE v. WAYLON D. KNOTT

No. M2000-02524-CCA-R3-CD

COURT OF CRIMINAL APPEALS OF TENNESSEE, MIDDLE SECTION, AT NASHVILLE

2001 Tenn. Crim. App. LEXIS 558

June 20, 2001, Assigned on Briefs
July 27, 2001, Filed

PRIOR HISTORY: [*1] State Appeal from the Circuit Court for Stewart County. No. 4-1231-CR-99. Allen Wallace, Judge.

DISPOSITION: Judgment of the Circuit Court is Reversed and Remanded.

CASE SUMMARY:

PROCEDURAL POSTURE: The State appealed from the order of the Circuit Court for Stewart County, Tennessee, that suppressed evidence the State sought to use in its prosecution of the defendant for manufacturing methamphetamine.

OVERVIEW: A deputy who knew that informants had accused defendant of drug manufacturing stopped him because his truck's license plates were registered to a different vehicle. A second deputy asked for defendant's permission to search his truck; defendant refused. This deputy told defendant he was calling a K-9 unit; defendant responded by agreeing to a search. Drugs and paraphernalia were found in the truck, and defendant was indicted. The appellate court held that the order suppressing evidence was improper. Whether defendant was seized for Fourth Amendment purposes when he gave consent or whether his presence was a voluntary police-citizen encounter depended on whether the citation was issued before or after consent was given. The trial court erred in not making specific findings on this question, or on the question of whether defendant was delayed any longer than was necessary to effect the purpose of the stop. The trial court was obliged to make findings of fact on the question of the voluntariness of defendant's consent, if, in fact, it was determined that defendant's consent to search was given while he was lawfully detained.

OUTCOME: The judgment was reversed and the case was remanded.

LexisNexis(R) Headnotes

Criminal Law & Procedure > Search & Seizure > Warrantless Searches > Consent to Search > Sufficiency & Voluntariness
Criminal Law & Procedure > Pretrial Motions & Procedures > Suppression of Evidence
Criminal Law & Procedure > Appeals > Standards of Review > General Overview
[HN1] In reviewing a denial of a motion to suppress, an appellate court looks to the facts adduced at the suppression hearing which are most favorable to the prevailing party. In considering the evidence presented at the hearing, the appellate court extends great deference to the fact-finding of the suppression hearing judge with respect to weighing credibility, determining facts, and resolving conflicts in the evidence. Indeed, these findings

will be upheld unless the evidence preponderates otherwise.

Constitutional Law > Bill of Rights > Fundamental Rights > Search & Seizure > Probable Cause
Constitutional Law > Bill of Rights > Fundamental Rights > Search & Seizure > Scope of Protection
Criminal Law & Procedure > Search & Seizure > Seizures of Persons
[HN2] Not all encounters between police officers and citizens constitute "seizure" within the meaning of the Fourth Amendment. In construing the demands of the Fourth Amendment, courts have recognized three distinct types of police-citizen interactions: (1) a full scale arrest which must be supported by probable cause; (2) a brief investigatory detention which must be supported by reasonable suspicion; and (3) brief police-citizen encounters which require no objective justification. While arrests and investigatory detentions implicate varying degrees of constitutional protection, not all personal intercourse between policemen and citizens involves "seizures" of persons. Only when the officer, by means of physical force or show of authority, has in some way restrained the liberty of a citizen may a court conclude that a "seizure" has occurred.

Constitutional Law > Bill of Rights > Fundamental Rights > Search & Seizure > Probable Cause
Constitutional Law > Bill of Rights > Fundamental Rights > Search & Seizure > Scope of Protection
Criminal Law & Procedure > Search & Seizure > Seizures of Persons
[HN3] In construing the demands of the Fourth Amendment, courts have recognized three distinct types of police-citizen interactions: (1) a full scale arrest which must be supported by probable cause; (2) a brief investigatory detention which must be supported by reasonable suspicion; and (3) brief police-citizen encounters which require no objective justification. While arrests and investigatory detentions implicate varying degrees of constitutional protection, not all personal intercourse between policemen and citizens involves "seizures" of persons. Only when the officer, by means of physical force or show of authority, has in some way restrained the liberty of a citizen may a court conclude that a "seizure" has occurred.

Criminal Law & Procedure > Search & Seizure > Seizures of Persons
[HN4] Even when police have no basis for suspecting that an individual has committed or is about to commit a crime, the officer may approach an individual in a public place and ask questions without implicating constitutional protections.

Constitutional Law > Bill of Rights > Fundamental Rights > Search & Seizure > Warrants
Criminal Law & Procedure > Search & Seizure > Search Warrants > General Overview
Criminal Law & Procedure > Search & Seizure > Warrantless Searches > Consent to Search > Sufficiency & Voluntariness
[HN5] If an appellant's consent to a search was voluntary, the fact that the police lacked any suspicion of criminal activity to request a search is irrelevant. One of the specifically established exceptions to the requirements of both a warrant and probable cause is a search that is conducted pursuant to consent. The burden of proof rests upon the state to show by a preponderance of the evidence that the consent to a warrantless search was given freely and voluntarily. Where there has been a prior constitutional violation, the government's burden to prove the defendant consented becomes all the more difficult. The validity of the search depends upon whether, based upon the totality of the circumstances, the consent was voluntarily given, and not the result of duress or coercion.

Criminal Law & Procedure > Search & Seizure > Warrantless Searches > Consent to Search > Sufficiency & Voluntariness
[HN6] The following eight factors have been used when evaluating the voluntariness of the consent to a search: (1) voluntariness of the accused's custodial status; (2) the length of the detention of the accused before he or she gave consent; (3) the presence of coercive police procedures; (4) the accused's awareness of his or her right to refuse to consent; (5) the accused's age, education and intelligence; (6) whether the accused understands his or her constitutional rights; (7) the extent of his or her previous experience with the police; and (8) whether the accused was injured, intoxicated, or in ill health. Although all eight factors are relevant, no single factor is dispositive nor are they all-inclusive factors for determining voluntariness. Of critical importance is factor (1), the voluntariness of the appellant's custodial status, i.e., whether at the time the appellant granted permission to search he was unlawfully detained.

Criminal Law & Procedure > Search & Seizure > Fruit of the Poisonous Tree > Attenuation
Criminal Law & Procedure > Search & Seizure > Warrantless Searches > Consent to Search > Sufficiency & Voluntariness

Criminal Law & Procedure > Search & Seizure > Warrantless Searches > Stop & Frisk > Detention
[HN7] Even if consent to a search is voluntarily given, it does not remove the taint of an illegal detention if the consent is the product of that detention and not an independent act of free will. Moreover, if it is determined that the appellant was unlawfully detained, i.e., a Fourth Amendment violation occurred, at the time consent to search was granted, then the "voluntariness" test is no longer applicable. Instead, in order to determine whether the consent is sufficiently removed from the taint of the illegal arrest, the reviewing court must consider: (1) the presence or absence of Miranda warnings; (2) the temporal proximity of the arrest and the confession; (3) the presence of intervening circumstances; and finally, of particular significance, (4) the purpose and flagrancy of the official misconduct.

Criminal Law & Procedure > Search & Seizure > Warrantless Searches > Consent to Search > Sufficiency & Voluntariness
[HN8] In assessing the effect of the length of the detention on the voluntariness of an appellant's consent to search, a reviewing court is required to consider whether the police diligently pursued issuance of a citation or whether the appellant's detention resulted in a de facto seizure.

Civil Procedure > Jurisdiction > Jurisdictional Sources > General Overview
Criminal Law & Procedure > Appeals > Appellate Jurisdiction > Jurisdiction
Governments > Courts > Authority to Adjudicate
[HN9] The Tennessee Court of Criminal Appeals does not possess fact finding authority; its jurisdiction being appellate only. *Tenn. Code Ann. § 16-5-108.*

Criminal Law & Procedure > Appeals > Standards of Review > De Novo Review > General Overview
[HN10] An appellate court reviews the application of the law to the facts de novo. If the findings are incomplete and/or the record is insufficient, de novo review will have relatively little benefits when the issue presented is of an extremely fact-bound nature. De novo review is permitted to prevent a miscarriage of justice resulting from the legal determination of a single judge, not to reconstruct the factual determinations reserved for the trial court when none are found. Thus, if the trial court's findings of fact are incomplete or not to be found at all, and these findings cannot be substantially supplemented by the record, an appellate court is prevented from completing any meaningful review of the law applicable to those pertinent factors.

COUNSEL: William B. (Jake) Lockert, III, District Public Defender; Columbus Wade Bobo, Assistant Public Defender, Ashland City, Tennessee, for the Appellee, Waylon D. Knott.

Paul G. Summers, Attorney General and Reporter; Michael Moore, Solicitor General; David H. Findley, Assistant Attorney General; and Carey J. Thompson, Assistant District Attorney General, for the Appellant, State of Tennessee.

JUDGES: DAVID G. HAYES, J., delivered the opinion of the court, in which L. T. LAFFERTY, Sr.J., joined; THOMAS T. WOODALL, J., not participating,.

OPINION BY: DAVID G. HAYES

OPINION

The Appellant, Waylon D. Knott, was indicted by a Stewart County Grand Jury on one count of manufacturing methamphetamine, one count of possession with intent to sell methamphetamine, and one count of felony possession of drug paraphernalia. Following a traffic stop for improper registration, Knott, after first refusing, granted consent to search his vehicle, which resulted in the seizure of a quantity of drugs. Knott moved to suppress the evidence [*2] upon grounds that consent was not voluntarily given. The trial court granted Knott's motion to suppress and dismissed the indictment, finding that the "search was unconstitutional because the officer had no reasonable, articulable suspicion of further criminal activity to justify the request to search the vehicle and further detain [Knott]." The State appeals from the trial court's ruling asserting that Knott's consent was voluntary and therefore the search was valid. We find that the dispositive issues presented are: (1) whether Knott was unlawfully detained at the time that he consented to the search and, if so; (2) whether Knott's consent to search was voluntarily given. Because no findings were entered relevant to these issues, we are required to remand for findings of fact on these questions. Accordingly, the judgment of the trial court is reversed and the case remanded.

Factual Background

On June 18, 1999, Stewart County Chief Deputy Sheriff Kenneth Anderson observed the Appellant's truck drive by the sheriff's office in Dover. Anderson was familiar with the Appellant because several informants had previously informed Anderson that the Appellant was involved in [*3] manufacturing methamphetamine.

Anderson followed the Appellant and a check revealed that the truck's license plates were registered to a different vehicle. Anderson effected a stop of the Appellant's truck, which included the passenger, Jennifer Davenport, at 9:53 p.m.

At 9:54 p.m., Anderson requested Deputy Jason Gillespie, a member of the Drug Task Force unit, to join him since Gillespie was experienced in drug investigations. At 9:57 p.m., Tennessee State Trooper Brett Bumpus, who had overheard the radio transmissions, joined Anderson and Gillespie at the scene. Anderson questioned the Appellant about the vehicle registration. The Appellant explained that he had just purchased a different vehicle and had not yet "switched" the registration. Anderson continued to check the driver's license of the Appellant and checked for any outstanding warrants on the passenger, Davenport. At 10:04 p.m., the dispatcher notified Anderson that there was nothing on file on either occupant. Anderson then continued the process of writing the citation for the registration violation. Anderson testified that it would take an average of twelve to thirteen minutes to complete the average citation, but [*4] he did not remember the specific time he completed the citation in this case.

While Deputy Anderson was occupied obtaining information from the dispatcher concerning the vehicle's registration and whether warrants were outstanding, Deputy Gillespie approached the Appellant and asked permission to search his truck. The Appellant refused. The proof at the hearing indicates that the citation had not been issued at this point. After the Appellant informed Deputy Gillespie that he would not permit him to search, the following events are related by Gillespie:

At that time I told [the Appellant] that I was going to contact the K-9; and I was requesting that he leave his vehicle here while I waited on the K-9 unit. I went to the car, got on the radio and dispatched. . . . both K-9 officers that work for the 23rd Task Force. When I got back out of the car, [the Appellant] told me that he was in a hurry; and that if I want to go on and look inside his vehicle, I could. I told him it was up to him. It didn't matter to me. I didn't mind waiting on the dog. He said no, go on and search.

The radio log indicates that Deputy Gillespie requested the K-9 unit at 10:09 p.m. Deputy Anderson [*5] corroborated Deputy Gillespie's testimony and stated that he overheard the Appellant advise Gillespie to "go-ahead" and search. Deputy Anderson explained that he did not participate in the search because '[he] continued writing [the] citation." Immediately after obtaining consent to search, Deputy Gillespie and Trooper Bumpus began a search of the vehicle. The methamphetamine and drug paraphernalia, which formed the basis for the indictments, were found by Trooper Bumpus during the search. The search was concluded before the K-9 unit arrived. At 10:27 p.m., the K-9 unit arrived and no further drugs were found.

ANALYSIS

The State contends that the Appellant's consent to the search of his vehicle was voluntarily given and accordingly, the trial court's suppression of the evidence seized was error. [HN1] In reviewing a denial of a motion to suppress, this court looks to the facts adduced at the suppression hearing which are most favorable to the prevailing party. *State v. Daniel, 12 S.W.3d 420, 423 (Tenn. 2000)*(citing *State v. Odom, 928 S.W.2d 18, 23 (Tenn. 1996))*; [*6] see also *State v. Timothy Walton, 41 S.W.3d 75, 81 (Tenn. 2001)*. In considering the evidence presented at the hearing, this court extends great deference to the fact-finding of the suppression hearing judge with respect to weighing credibility, determining facts, and resolving conflicts in the evidence. *Daniel, 12 S.W.3d at 423*. Indeed, these findings will be upheld unless the evidence preponderates otherwise. Id. In this case, the trial court suppressed the evidence, finding:

Despite having sufficient probable cause to make the stop, and obtaining consent for the search from the defendant, the search was unconstitutional because the officers had no reasonable, articulable suspicion of further criminal activity to justify the request to search the vehicle and to further detain the defendant.

We begin our analysis by first observing that [HN2] not all encounters between police officers and citizens constitute "seizure" within the meaning of the Fourth Amendment. See *Terry v. Ohio, 392 U.S. 1, 19 n.16, 88 S. Ct. 1868, 1879, n. 16, 20 L. Ed. 2d 889 (1968)*. [*7] In *State v. Daniel, 12 S.W.3d at 424*, our supreme court explained:

[HN3] In construing the demands of the Fourth Amendment, courts have recognized three distinct types of police-citizen interactions: (1) a full scale arrest which must be supported by probable cause, see *Brown v. Illinois, 422 U.S. 590, 95 S. Ct. 2254, 45 L. Ed. 2d 416 (1975)*; (2) a brief investigatory detention which must be supported by reasonable suspicion, see *Terry v. Ohio, 392 U.S. 1, 88 S. Ct. 1868, 20 L. Ed. 2d 889 (1968)*; and (3) brief police-citizen encounters which require no objective justification, see *Florida v. Bostick, 501 U.S. 429, 434, 111 S. Ct. 2382, 2386, 115 L. Ed. 2d 389 (1991)*(citations omitted). . . . While arrests and investigatory detentions implicate varying degrees of constitutional protection, "not all personal intercourse between policemen and citizens involves 'seizures' of persons. Only when the officer, by means of physical force or show of authority, has in some way restrained the liberty

of a citizen may we conclude that a 'seizure' [*8] has occurred." *Terry, 392 U.S. at 19 n. 16, 88 S. Ct. 1868, at 1879 n. 16*; *State v. Crutcher, 989 S.W.2d 295, 300 (Tenn. 1999)*; *State v. Moore, 776 S.W.2d 933, 937 (Tenn. 1989)*.

Indeed, courts have repeatedly held that [HN4] even when police have no basis for suspecting that an individual has committed or is about to commit a crime, the officer may approach an individual in a public place and ask questions without implicating constitutional protections. *Bostick, 501 U.S. at 434, 111 S. Ct. at 2386*; *Florida v. Royer, 460 U.S. 491, 497, 103 S. Ct. 1319, 1324, 75 L. Ed. 2d 229 (1983)* (plurality opinion)(citations omitted).

The trial court's resolution of the suppression motion turned on the point that because "the officers had no reasonable articulable suspicion of further criminal activity to justify the request to search and to further detain the defendant," the search was unlawful. This analysis is misplaced. [HN5] If [*9] the Appellant's consent was voluntary, as argued by the State at trial and on appeal, the fact that the police lacked any suspicion of criminal activity to request a search is irrelevant. See *Schneckloth v. Bustamonte, 412 U.S. 218, 219, 93 S. Ct. 2041, 2043, 36 L. Ed. 2d 854 (1973)*. "One of the specifically established exceptions to the requirements of both a warrant and probable cause is a search that is conducted pursuant to consent." *Schneckloth v. Bustamonte, 412 U.S. at 219, 93 S. Ct. at 2043-44*. The burden of proof rests upon the State to show by a preponderance of the evidence that the consent to a warrantless search was given freely and voluntarily. *State v. Ashworth, 3 S.W.3d 25, 28 (Tenn. Crim. App. 1999)*(citing *Schneckloth v. Bustamonte, 412 U.S. at 248-249, 93 S. Ct. at 2059*). Where there has been a prior constitutional violation, the government's burden to prove the defendant consented becomes all the more difficult. *United States v. Smith, 574 F.2d 882, 887 (6th Cir. 1978)*(citing *United States v. Bazinet, 462 F.2d 982, 989-90* (8th Cir.), cert. denied, *409 U.S. 1010, 93 S. Ct. 453, 34 L. Ed. 2d 303* [*10] ((1972)). The validity of the search depends upon whether, based upon the totality of the circumstances, the consent was "voluntarily given, and not the result of duress or coercion." *Schneckloth v. Bustamonte, 412 U.S. at 248-249, 93 S. Ct. at 2059*.

[HN6] The following eight factors have been used when evaluating the voluntariness of the consent:

(1) voluntariness of the accused's custodial status;

(2) the length of the detention of the accused before he or she gave consent;

(3) the presence of coercive police procedures;

(4) the accused's awareness of his or her right to refuse to consent;

(5) the accused's age, education and intelligence;

(6) whether the accused understands his or her constitutional rights;

(7) the extent of his or her previous experience with the police; and

(8) whether the accused was injured, intoxicated, or in ill health.

See generally *State v. Carter, 16 S.W.3d 762, 769 (Tenn. 2000)*; see also *United States v. Ivy, 165 F.3d 397, 402 (6th Cir. 1998)*. Although all eight factors are relevant, no single factor [*11] is dispositive nor are they all-inclusive factors for determining voluntariness. Id. Of critical importance is factor (1), the voluntariness of the Appellant's custodial status, *i.e.*, whether at the time the Appellant granted permission to search he was unlawfully detained. [HN7] Even if consent is voluntarily given, it does not remove the taint of an illegal detention if it is the product of that detention and not an independent act of free will. *State v. Huddleston, 924 S.W.2d 666, 674 (Tenn. 1996)*; *United States v. Richardson, 949 F.2d 851, 858 (6th Cir. 1991)*. Moreover, if it is determined that the Appellant was unlawfully detained, *i.e.*, a Fourth Amendment violation occurred, at the time consent to search was granted, then the "voluntariness" test is no longer applicable. *Huddleston, 924 S.W.2d at 673-74.* [1]

> 1 "We agree with those jurisdictions that have rejected the voluntariness test and have applied instead a 'fruit of the poison tree' analysis in determining whether or not a statement obtained during an illegal detention must be suppressed." *State v. Huddleston, 924 S.W.2d at 674* (citing *Wong Sun v. United States, 371 U.S. 471, 488, 83 S. Ct. 407, 417, 9 L. Ed. 2d 441 (1963))*.

[*12] Instead, in order to determine whether the consent is sufficiently removed from the taint of the illegal arrest, the reviewing court must consider: (1) the presence or absence of *Miranda* warnings; (2) the temporal proximity of the arrest and the confession; (3) the presence of intervening circumstances; and finally, of particular significance, (4) the purpose and flagrancy of the official misconduct. *Huddleston, 924 S.W.2d at 674-75*. As previously observed, whether the Appellant was seized for purposes of the Fourth Amendment at the time consent was granted or whether his presence could be classified as a voluntary police-citizen encounter depends upon whether the citation was issued before or after consent was given. No specific findings were entered by the trial court on this question of vital importance. Also included within this issue is the question of whether Deputy Anderson delayed the Appellant any longer than was necessary to effect the purpose of the

stop. [HN8] In assessing the effect of the length of the detention, a reviewing court is required to consider whether [*13] the police diligently pursued issuance of the citation or whether the Appellant's detention resulted in a *de facto* seizure. See *United States. v. Sharpe, 470 U.S. 675, 684-685, 105 S. Ct. 1568, 1574-1575, 84 L. Ed. 2d 605 (1985)*. Although we are provided with a multitude of radio log events and other relevant and non-relevant happenings at the scene on the date in question, the time frame of the two critical events which have not been factually determined are: (1) the time at which issuance of the citation was or should have been completed; and (2) the time Appellant's consent to search was given. Moreover, as previously noted, we are without findings of fact on the question of the voluntariness of the Appellant's consent, if, in fact, it is determined that the Appellant's consent to search was given while he was lawfully detained.

In this case, our review is precluded by the absence of these critical findings. To resolve the issue of consent, we, as an appellate court, would be forced to act as fact finder and assess the credibility of the witnesses who testified at the hearing, resolve the contradictions and weigh the evidence. [*14] [HN9] This court does not possess fact finding authority; our jurisdiction being appellate only. *Tenn. Code Ann. § 16-5-108.* [HN10] This court reviews the application of the law to the facts *de novo*. See *State v. Yeargan, 958 S.W.2d 626, 629 (Tenn. 1997)*. If the findings are incomplete and/or the record is insufficient, *de novo* review will have relatively little benefits when the issue presented is of an extremely fact-bound nature. *Ornelas v. United States, 517 U.S. 690, 700-701, 116 S. Ct. 1657, 1664, 134 L. Ed. 2d 911 (1996)*(Scalia, J., dissenting). *De novo* review is permitted to prevent a miscarriage of justice resulting from the legal determination of a single judge, not to reconstruct the factual determinations reserved for the trial court when none are found. Thus, if the trial court's findings of fact are incomplete or not to be found at all, and these findings cannot be substantially supplemented by the record, an appellate court is prevented from completing any meaningful [*15] review of the law applicable to those pertinent factors. This is precisely the situation in the case before this court.

CONCLUSION

For the foregoing reasons, we conclude that the trial court's decision to suppress the evidence was based upon an erroneous ground which improvidently pretermitted findings of fact relevant to the determination of whether the Appellant was unlawfully detained and his consent voluntarily given. Accordingly, we reverse the judgment of the trial court and remand for further factual determinations consistent with this opinion.

DAVID G. HAYES, JUDGE



STATE OF TENNESSEE v. ABBY L. MILLS

No. W2008-00984-CCA-R3-CD

COURT OF CRIMINAL APPEALS OF TENNESSEE, AT JACKSON

2009 Tenn. Crim. App. LEXIS 337

January 6, 2009, Session
May 11, 2009, Filed

SUBSEQUENT HISTORY: Appeal granted by, Remanded by *State v. Mills, 2009 Tenn. LEXIS 825 (Tenn., Nov. 23, 2009)*

PRIOR HISTORY: [*1]

Tenn. R. App. P. 3 Appeal as of Right; Judgment of the Circuit Court Affirmed. Direct Appeal from the Circuit Court for Lauderdale County. No. 8331-A. Joseph H. Walker, Judge.

DISPOSITION: Judgment of the Circuit Court Affirmed.

COUNSEL: Rebecca Mills, Ripley, Tennessee, for the appellee, Abby L. Mills.

Robert E. Cooper, Jr., Attorney General and Reporter; J. Ross Dyer, Assistant Attorney General; D. Michael Dunavant, District Attorney General; and Julie Pillow, Assistant District Attorney General, for the appellant, State of Tennessee.

JUDGES: J.C. MCLIN, J., delivered the opinion of the court, in which ALAN E. GLENN and CAMILLE R. MCMULLEN, JJ., joined.

OPINION BY: J.C. McLIN

OPINION

The defendant, Abby L. Mills, was indicted by the Lauderdale County Grand Jury of possession of a Schedule II controlled substance, cocaine, with the intent to deliver; possession of a Schedule III controlled substance, Hydrocodone, with the intent to deliver; and possession of a Schedule VI controlled substance, marijuana, with the intent to deliver over .5 ounces. After a hearing, the trial court granted defendant's motion to suppress evidence of items found in the defendant's home. On appeal, the state asserts that the trial court erred in suppressing [*2] the evidence obtained as a result of a valid search warrant. Upon review, we affirm the judgment of the trial court.

OPINION

Background

The defendant was indicted on three counts of possession of a controlled substance with the intent to deliver. Prior to a trial, the defendant filed a motion to suppress the evidence obtained pursuant to a search warrant of the residence the defendant shared with Mr. Christopher Younger. The following testimony was presented at a hearing on the defendant's motion. Garrison Taylor with the Covington Police Department testified that his unit received a tip from a confidential informant that Mr. Younger had delivered large amounts of marijuana to the informant's residence. Based on the tip, his unit began an investigation of Mr. Younger. In a "buy/bust" operation, Mr. Younger was contacted by the informant and requested to bring one pound of marijuana to the home of the informant on Mill Road. The

telephone call was monitored by the police and Mr. Younger's voice was identified by the informant. Approximately twenty minutes after the telephone call, Mr. Younger arrived at the informant's home in a truck accompanied by three other individuals. Mr. Younger [*3] entered the informant's residence with approximately one pound of marijuana and was arrested. The three occupants in Mr. Younger's truck were taken into custody and interviewed. All three passengers stated that they had come directly from the residence where Mr. Younger lived to the informant's residence without making any additional stops. Officer Taylor sent "two agents with the Drug Task Force that were actually Ripley officers to [Mr. Younger's] residence to secure the residence so that [he] was able to acquire or attempt to acquire a search warrant for that residence." An affidavit claiming that there was probable cause to search the residence was prepared and signed by Officer Taylor. The affidavit was made an exhibit at the hearing and states:

> Personally appeared before me Agent Garrison Taylor of the 25th Judicial Drug Task Force who makes oath that He has probable cause for believing and does believe that Christopher J. Younger is in possession of the following described property, to-wit: Marijuana, a schedule VI controlled substance and/or any other drug related paraphernalia, controlled substances, records, monies, and any gang related paraphernalia contrary to the laws of [*4] the State of Tennessee, upon the following described premises to wit: 664 Brogdon Rd. Henning TN, a single story wood framed residence with tan siding, maroon shu[tt]ers and a black roof. The address is located on the mailbox situated in front of the residence. Search to include all outbuildings and vehicles related to said premises; and the reason for such belief and the probable cause for such belief are that agents received information from a confidential informant that Christopher Younger was delivering large amounts of Marijuana to his residence at 130 Mill Rd. in the City of Covington, TN. Acting on this information agents began an investigation. Agents went to the residence of 130 Mill Rd. Covington, TN. and spoke with the confidential informant. Agents then wired said confidential informant with an audio/video recording device. Said informant then contacted Christopher Younger at his residence in Henning TN. by calling phone number . . . . Said informant then spoke to a male, who said informant knew as Christopher Younger. Said informant and Christopher Younger spoke momentarily and then said informant requested that Christopher Younger deliver him one pound of Marijuana. Christopher [*5] Younger stated that he was about to leave and go to Brighton TN. and that he would bring the package to said informants residence. Said confidential informant then agreed and ended the phone conversation with Christopher Younger. Agents then left said residence and took position within a mile of said residence where agents monitored the confidential informant via listening device. Approximately twenty minutes of making the phone call, Agents monitored the confidential informant state that he, Christopher Younger, is here. Agents then surrounded said residence where Christopher Younger was discovered inside the residence and in possession of a clear plastic bag containing a green plant-like substance which appeared to be Marijuana. Agents also discovered a White Chevrolet truck in the driveway of said residence, which was registered to a Christopher Younger. Agents discovered several passengers inside the vehicle whose names are as follows: Cliff Proctor, age 18, Christopher Brown, age 22 and Bradley Younger, age 23. Agents spoke with the passengers of the vehicle who stated that they met at Christopher Younger's residence in Henning, TN. to go to Brighton arms in Brighton, TN, in order [*6] to pick up some items to target shoot. Passengers stated that they left Christopher Younger's residence with Christopher Younger, in his vehicle and drove directly to 130 Mill Rd. Covington, TN. Passengers state that Christopher Younger exited the vehicle at said residence and went inside said residence.

> Passengers advised this is when the police arrived to said residence and took said passengers into custody. Agents also utilized a K9 narcotics sniffing dog, which was handled by Agent Joey Rhea. Agent Rhea stated that said K9 alerted on two separate areas of Christopher Younger's vehicle. Agents then searched said vehicle. Upon searching said vehicle Agents discovered a handgun in the glove compartment of said vehicle. Agents discovered via Christopher Younger that he had said handgun by way of his grandfather. Agents believe that Christopher Younger delivered the approximate one pound of Marijuana to the said residence and that the said Marijuana was brought from the residence of Christopher Younger at 664 Brogdon Rd. in Henning TN. Agents believe that additional Marijuana and/or illegal narcotics still remain at said residence of 664 Brogdon Rd. Henning, TN. This did occur within [*7] the past 72 hours.
>
> Affiant therefore asks that a warrant be issued to search the premises herein described either by day or night, where he believes said Marijuana, a schedule VI controlled substance and/or any other drug related paraphernalia, controlled substances, records and monies are now possessed, contrary to the Laws of the State of Tennessee.

On cross-examination, Officer Taylor testified that because Mr. Younger went directly from his residence to the residence of the informant and arrived with approximately one pound of marijuana, he believed that there were illegal drugs at Mr. Younger's residence. Officer Taylor stated that police officers were sent to secure the residence while he obtained a search warrant to avoid having Mr. Younger, or one of the occupants of his vehicle, contact the defendant, Abby Mills, and advise her to destroy any illegal drugs at the residence.

Officer John Thompson with the Lauderdale County Sheriff's Office assigned to the drug task force testified that after Mr. Younger's arrest, he interviewed the occupants of Mr. Younger's vehicle. All of the occupants gave statements indicating that they left Mr. Younger's residence and traveled directly to [*8] the informant's residence on Mill Road. Officer Thompson agreed that all three of the occupants could have alerted individuals at Mr. Younger's residence that the police were obtaining a search warrant. On cross-examination, Officer Thompson recalled that one of the occupants tried to use his cell phone while being detained. Officer Thompson stated that a bag similar to the bag Mr. Younger carried into the informant's house was found inside Mr. Younger's truck, however, stated that no evidence or statement connected the bags with Mr. Younger's residence.

Greg Land, drug investigator with the Ripley Police Department, testified that after approximately twenty minutes at the Mill Road residence in Covington, he and Officer Rhea proceed to Mr. Younger's residence on Brogdon Road in Henning. They parked in the driveway and knocked on the front and back doors, announcing who they were. Officer Land stated the windows were covered with blinds and he assumed that no one was home. They remained in the front yard of the residence and waited for officers to arrive with a search warrant.

Officer Land stated that approximately one hour after they arrived at the residence on Brogdon Road, Officer [*9] Rhea spotted the defendant in the house. Officer Rhea approached the front door, announced who he was, and "told [the defendant] to open the door." Officer Land testified that he then went to the front porch and told the defendant that Mr. Younger had been arrested. Both police officers entered the house. Officer Land could not recall if the defendant nodded, indicating that he and Officer Rhea could enter the house, or if the defendant actually stated "come in." Officer Land stated that he asked for permission to search the house, and when the defendant declined the request, Officer Land "told her to have a seat until [the police] arrived with a warrant." Officer Land denied that a search was performed before the warrant arrived and stated that while they waited, the defendant was allowed to go to the bathroom. However, the defendant was accompanied to the bathroom by Officer Rhea because they did not want the defendant to get out of their sight and obtain a weapon or destroy evidence. Officer Land stated that as they waited for the warrant, the defendant's phone rang "[m]ore than a dozen" times, however, the defendant was not allowed to answer the calls. On cross-examination, Officer [*10] Land agreed that he and Officer Rhea were armed, that they did not inform the defendant that she was free to

leave the residence, and that the defendant was pregnant and appeared upset.

Officer Rhea with the Ripley Police Department testified that he and Officer Land were outside the defendant's residence for one hour before the defendant opened the door. Officer Rhea stated that he called out to the defendant, stating, "Abby, it's the police department. Open the door." Officer Rhea further testified that when the defendant opened the door, Officer Land explained the situation and the defendant asked the officers to come in. Officer Rhea agreed that the defendant was alone in the house, pregnant and obviously frightened. He stated that he saw nothing in plain view indicating illegal activity. On cross-examination, Officer Rhea was asked if Officer Land was correct when he said they "entered the residence and then the conversation took place between [the police] and [the defendant]." Officer Rhea testified that Officer Land's testimony was not accurate and instead claimed that the defendant opened the door and the police officers told her why they were there, then they stepped inside [*11] the house. Officer Rhea agreed that it appeared that the defendant knew that they were outside for some time, but did not answer the door. Officer Rhea agreed that he and Officer Land were only able to enter the residence after he told the defendant to open the door.

After taking the matter under advisement, the trial court issued a written order granting the defendant's motion to suppress the evidence obtained by police officers in the defendant's home pursuant to the search warrant issued on August 30, 2007. The state has appealed.

Analysis

I. Warrantless entry

On appeal, the state argues that the trial court's suppression of the evidence found in the defendant's home was based on erroneous findings by the court that the officers entered the defendant's residence without consent and upon an "unsubstantiated claim of exigent circumstances." In the alternative, the state asserts that even if the warrantless entry and the temporary restraint were unlawful, the evidence was "seized as a result of legally sufficient and properly executed search warrant." The state argues no evidence was identified or seized until the arrival of the search warrant.

When reviewing a trial court's decision on [*12] a motion to suppress, the court conducts a de novo review of the trial court's conclusions of law and application of law to facts. *See State v. Walton, 41 S.W.3d 75, 81 (Tenn. 2001)*. However, the trial court's findings of fact are presumed correct unless the evidence contained in the record preponderates against them. *See State v. Daniel, 12 S.W.3d 420, 423 (Tenn. 2000)*. "Questions of credibility of the witnesses, the weight and value of the evidence, and resolution of conflicts in the evidence are matters entrusted to the trial judge as the trier of fact." *State v. Lawrence, 154 S.W.3d 71, 75 (Tenn. 2005)* (quoting *State v. Odom, 928 S.W.2d 18, 23 (Tenn. 1996)*). Moreover, the prevailing party is entitled to the strongest legitimate view of the evidence and all reasonable and legitimate inferences that may be drawn from that evidence. *State v. Hicks, 55 S.W.3d 515, 521 (Tenn. 2001)*.

The *Fourth Amendment to the United States Constitution* provides:

> The right of the people to be secure in their persons, houses, papers, and effects, against unreasonable searches and seizures, shall not be violated, and no Warrants shall issue, but upon probable cause, supported by Oath or affirmation, and [*13] particularly describing the place to be searched, and the persons or things to be seized.

A similar guarantee is provided in *Article I, section 7 of the Tennessee Constitution*:

> That the people shall be secure in their persons, houses, papers and possessions, from unreasonable searches and seizures; and that general warrants, whereby an officer may be commanded to search suspected places, without evidence of the fact committed, or to seize any person or persons not named, whose offences are not particularly described and supported by evidence, are dangerous to liberty.

The essence of these constitutional protections is to "safeguard the privacy and security of individuals against arbitrary invasions of government officials." *State v. Downey, 945 S.W.2d 102, 106 (Tenn. 1997)* (quoting *Camara v. Municipal Court, 387 U.S. 523, 528, 87 S. Ct.*

1727, 18 L. Ed. 2d 930 (1967)). As a result, warrantless searches and seizures inside a residence are presumed to be unreasonable. *Payton v. New York, 445 U.S. 573, 586, 100 S. Ct. 1371, 63 L. Ed. 2d 639 (1980)*. "Even though a felony has been committed and officers have probable cause to believe that they will locate incriminating evidence inside a residence, a warrantless entry to search for contraband or weapons is unconstitutional [*14] absent exigent circumstances." *State v. Carter, 160 S.W.3d 526, 531 (Tenn. 2005)* (citing *Payton, 445 U.S. at 587-588*).

In the instant case, the trial court found "that the intrusion to secure the residence of [the defendant] was illegal[,]" and further that "[t]he seizure of the [the defendant] was not permissible under the circumstances in this case." The record before us indicates that Officer Taylor dispatched Officers Land and Rhea to secure the residence in Lauderdale County while he attempted to secure a search warrant for the residence. Officer Taylor dispatched the officers based on his fear that any illegal drugs located at the residence would be destroyed. Officers Land and Rhea arrived at the residence, knocked on the front and back doors, walked around the residence, and attempted to look into the windows of the residence. The police officers then waited outside the residence for approximately one hour. Thereafter, Officer Rhea spotted the defendant in the residence and called out to her by name and told her to open the door. Officer Rhea admitted that it appeared that the defendant knew the police were outside of her house, but did not open the door until he commanded her [*15] to do so. Officer Land testified that they went into the house. Officer Land asked for permission to search the house, but the defendant denied permission. The defendant was then told to sit and wait for the search warrant to arrive. Officers Land and Rhea both stated that the defendant was pregnant and appeared upset and frightened. Officers testified that they did not inform the defendant that she was free to leave. Officers both agreed that Officer Rhea followed the defendant to the bathroom, and that the defendant was not allowed to answer numerous telephone calls made to the residence.

Viewed in a light most favorable to the defendant and with due deference to the trial court's factual findings, the record shows that the officers entered the defendant's private residence and remained inside without a warrant and without the defendant's permission. Furthermore, as found by the trial court, the record does not support the existence of exigent circumstances justifying the warrantless entry into the residence. The police officers were outside of the defendant's residence for approximately one hour before they entered the home, giving the defendant ample time to receive calls and destroy [*16] evidence if such was her intent. Here, the risk of the destruction of evidence, i.e., the alleged exigent circumstance, was created solely by actions of the police officers in going to the defendant's residence and entering the residence without a warrant in order to secure the residence for a later search. Therefore, the warrantless entry of the defendant's residence and her detention by officers in this case was not supported by exigent circumstances and was unlawful. *See Carter, 160 S.W.3d at 531*.

II. Independent source doctrine

Having concluded that the warrantless entry was unlawful, we next examine the effect of the illegal entry on the admissibility of the evidence subsequently seized from the defendant's residence. *See Carter, 160 S.W.3d at 532*. The exclusionary rule may bar the admission of evidence obtained from an unconstitutional search or seizure, however, the "rule does not apply to evidence obtained by means independent of the constitutional violation." *Id.* (citing *Wong Sun v. United States, 371 U.S. 471, 485-87, 83 S. Ct. 407, 9 L. Ed. 2d 441 (1963)*. To expound:

> Pursuant to the independent source doctrine, an unconstitutional entry does not compel exclusion of evidence found within a home if that evidence [*17] is subsequently discovered after execution of a valid warrant obtained on the basis of facts known entirely independent and separate from those discovered as a result of the illegal entry. Further, even "plain view" evidence observed during the warrantless entry will not be excluded so long as (1) the evidence is later discovered during a search pursuant to a valid warrant, (2) this valid warrant was obtained without reference to evidence uncovered during the illegal search, and (3) the government agents would have obtained the warrant even had they not made the illegal entry.

> In order for the subsequent warrant and search to be found genuinely independent of the prior unconstitutional entry, the . . . information obtained during the illegal entry may not have been presented to the issuing Magistrate.

State v. Clark, 844 S.W.2d 597, 600 (Tenn. 1992) (citations omitted). "The underlying policy of the independent source doctrine is that 'while the government should not profit from its illegal activity, neither should it be placed in a worse position that it would otherwise have occupied.'" *Carter, 160 S.W.3d at 532* (citing *Murray v. United States, 487 U.S. 533, 542, 108 S. Ct. 2529, 101 L. Ed. 2d 472 (1988))*.

The record in [*18] the instant case reveals that no evidence was identified or seized during the initial entry and detention. The affidavit supporting the warrant did not refer to the entry or the detention of the defendant. Additionally, the information in the affidavit was obtained prior to the initial entry. Accordingly, we conclude that the unlawful entry and detention did not taint the evidence ultimately seized pursuant to the search warrant. *See Carter, 160 S.W.3d at 533*. However, our analysis does not end here. We must next consider whether the affidavit supporting the issuance of the search warrant under which the evidence was seized established probable cause to search the defendant's residence. *Id.*

III. Probable cause for the issuance of a search warrant

The *Fourth Amendment to the United States Constitution* requires that search warrants issue only "upon probable cause, supported by Oath or affirmation." *Article I, Section 7 of the Tennessee Constitution* precludes the issuance of warrants except upon "evidence of the fact committed." Probable cause has been defined as "a reasonable ground for suspicion, supported by circumstances indicative of an illegal act." *State v. Henning, 975 S.W.2d 290, 294 (Tenn. 1998)* [*19] (citing *Lea v. State, 181 Tenn. 378, 181 S.W.2d 351, 352 (Tenn. 1944))*. No warrant should issue except upon probable cause based upon evidence appearing in a written and sworn affidavit. *State v. Jacumin, 778 S.W.2d 430, 436 (Tenn. 1989)*; *see also Tenn. Code Ann. § 40-6-103*. "[P]robable cause to support the issuance of the warrant must appear in the affidavit and judicial review of the existence of probable cause will not include looking to other evidence provided to or known by the issuing magistrate or possessed by the affiant." *State v. Moon, 841 S.W.2d 336, 338 (Tenn. Crim. App. 1992)* (citing *Jacumin, 778 S.W.2d at 432*)). Conclusory statements by an affiant alone will not provide probable cause sufficient to support the validity of a search warrant. *See Jacumin, 778 S.W.2d at 437*. On appeal, we must determine whether "the magistrate had a substantial basis for concluding that a search warrant would uncover evidence of wrongdoing[.]" *Id. at 432*.

To establish probable cause, an affidavit may rely on hearsay information from a confidential informant if the affidavit also provides facts sufficient to establish reliability. *Henning, 975 S.W.2d at 294-95*. "In determining the reliability of the information [*20] contained in an affidavit, a distinction exits between a 'citizen-informant' or a bystander witness and criminal informants or those from a 'criminal milieu.'" *Carter, 160 S.W.3d at 534* (citation omitted). Information obtained from a "citizen-informant" known to the affiant is presumed reliable. *Id.* However, if the affidavit does not provide any information regarding the status of a confidential informant as an "anonymous caller" or a "citizen-informant," there is no presumption of reliability. *Id.* Instead, the two-prong test for the reliability of information provided by criminal informants must be applied. *Id* (citations omitted). According to the test, when the affiant relies upon hearsay information from a confidential informant, the affidavit must inform the issuing magistrate of the basis of the knowledge provided by the informant and either the basis of credibility of the informant or the reliability of the informant's information. *Id.* In order to satisfy the first prong, the knowledge prong, the affiant must have informed the magistrate of some of the underlying circumstances which led to the informant's knowledge. *Moon, 841 S.W.2d at 338*. To satisfy the second prong, the veracity [*21] prong, the affidavit must have informed the magistrate of some of the underlying circumstances from which the affiant concluded that the informant was credible or the informant's information was reliable. *Id.*

Independent police corroboration of the informant's information may make up for deficiencies in either prong. *State v. Powell, 53 S.W.3d 258, 263 (Tenn. Crim. App. 2000)*. If there is no indication that the informant had any history of police cooperation, or of providing information to police which led to prior arrests or convictions, "[s]ome other indicia of the informant's credibility and

reliability, such as independent police corroboration, [is] required to support the credibility of the informant and by extension, support an independent finding of probable cause." *State v. Charles Ricky Pipkin, Jr., No. W2007-01110-CCA-R3-CD, 2008 Tenn. Crim. App. LEXIS 699, 2008 WL 4117966, at *7 (Tenn. Crim. App., at Jackson, Sept. 4, 2008)*. Police corroboration providing for only one element of non-suspect behavior and offering little support to the credibility of the informant or the reliability of the informant's information will not be sufficient to bolster information provided by a confidential informant. *State v. Smotherman, 201 S.W.3d 657, 663 (Tenn. 2006)* [*22] (holding an affidavit did not contain sufficient police corroboration to establish the reliability of an informant's information regarding the occurrence of illegal drug transactions at the defendant's residence).

In the instant case, the affidavit supporting the search warrant relies on information from a confidential informant. Therefore, in making a determination of whether the issuance of the search warrant was supported by probable cause, there is no presumption of reliability. *See Carter, 160 S.W.3d at 534*. While the affidavit recounts the informant's knowledge as to the fact that Mr. Younger delivered marijuana to the informant's residence, the affidavit does not reflect that the informant had actual knowledge regarding illegal activity occurring at the defendant's residence. There is nothing in the affidavit to show that the residence had been under police surveillance or that any surveillance had uncovered suspect activity at the residence. Police corroboration reported in the affidavit provides only that the passengers in Mr. Younger's vehicle indicated that Mr. Younger traveled from the defendant's residence to the residence of the informant. Evidence of the route taken by [*23] Mr. Younger prior to being arrested provides little, if any, corroboration of the informant's knowledge that drugs or contraband were located at the defendant's residence. *See Smotherman, 201 S.W.3d at 663*. Consequently, the informant's information fails to link Mr. Younger's delivery of drugs to any drugs suspected to be found at the defendant's residence. The basis for the affiant's belief that illegal drugs or contraband existed in the defendant's residence amounted to conclusory statements by the affiant, which were insufficient by themselves to provide probable cause. *See Jacumin, 778 S.W.2d at 437*. Additionally, the affidavit does not provide sufficient corroboration of the reliability of the informant or the informant's basis of knowledge concerning the defendant's residence. The affidavit contains no statement to support previous verifiable activities by Mr. Younger involving illegal drugs and does not report police surveillance of the residence. There is nothing in the affidavit to show verifiable information that the informant had worked with the police in the past. We conclude that the search warrant was not supported by probable cause. Evidence or statements obtained as [*24] fruits of an illegal search warrant must be suppressed. *See Wong Sun, 371 U.S. at 485*. Accordingly, the evidence obtained as a result of the search of the defendant's home must be suppressed as the fruit of an illegal entry and a subsequent illegal search.

CONCLUSION

Because the affidavit supporting the issuance of the search warrant was not sufficient to establish probable cause, we affirm the judgment of the trial court.

J.C. McLIN, JUDGE

Caution
As of: May 1, 2014 10:49 AM EDT

State v. Sides

Court of Criminal Appeals of Tennessee, Eastern Section, at Knoxville
March 20, 2001, Assigned on Briefs ; May 16, 2001, Decided
No. E2000-01422-CCA-R3-CD

Reporter: 2001 Tenn. Crim. App. LEXIS 364; 2001 WL 523375
STATE OF TENNESSEE v. JASHUA SHANNON SIDES

Prior History: **[*1]** Direct Appeal from the Criminal Court for Hamilton County. Nos. 225250 and 225251. Rebecca J. Stern, Judge.

Disposition: Judgment of the Criminal Court Affirmed in Part; Reversed in Part; Remanded.

Case Summary

Procedural Posture

Appellant State sought review of the decision of the Criminal Court for Hamilton County, Tennessee, which granted appellee's motion to suppress a breath alcohol test, field sobriety test, and any statements made by the appellee, finding the appellee was unlawfully arrested.

Overview

On review, the State alleged that the trial court erred in granting appellee's motion to suppress. The appellate court determined that the officer's testimony, that he thought he detected an odor of alcohol on appellee's breath, was insufficient to establish probable cause to arrest appellee for driving while under the influence (DUI). The only testimony establishing probable cause to arrest for DUI was the officer's testimony that he arrested the appellee for DUI after the breathalyzer was administered at the sheriff's department. This was after appellee had been illegally arrested for leaving the scene of an accident. Therefore, because appellee was illegally detained when he was transported to the sheriff's department, the appellate court held that the results of the breathalyzer test were inadmissible and any other evidence obtained after the arrest should be suppressed. However, the appellate court also found that the on-the-scene stop and questioning of the appellee was proper and held that any evidence developed prior to the unlawful arrest did not need to be suppressed.

Outcome

The trial court's suppression order was modified so that only the evidence obtained after appellee's illegal arrest was suppressed.

LexisNexis® Headnotes

Criminal Law & Procedure > Commencement of Criminal Proceedings > Arrests > Warrantless Arrests

HN1 Although an officer has probable cause to secure an arrest warrant for leaving the scene of an accident, he can not arrest the defendant without a warrant if the offense did not occur in the officer's presence. *Tenn. Code Ann. § 40-7-103(a)(1)*.

Criminal Law & Procedure > Commencement of Criminal Proceedings > Arrests > Warrantless Arrests

HN2 *Tenn. Code Ann. § 40-7-103(a)(6)* expressly authorizes a warrantless arrest at the scene of a traffic accident where the officer has probable cause to believe the person committed a traffic offense.

Criminal Law & Procedure > Preliminary Proceedings > Pretrial Motions & Procedures > Suppression of Evidence
Criminal Law & Procedure > ... > Standards of Review > Clearly Erroneous Review > General Overview
Criminal Law & Procedure > ... > Standards of Review > De Novo Review > General Overview
Criminal Law & Procedure > ... > Standards of Review > De Novo Review > Motions to Suppress

HN3 The findings of fact made by the trial court at the hearing on a motion to suppress are binding upon the appellate court unless the evidence contained in the record preponderates against them. However, the appellate court is not bound by the trial court's conclusions of law. The application of the law to the facts found by the trial court are questions of law that the appellate court reviews de novo.

Criminal Law & Procedure > Commencement of Criminal Proceedings > Arrests > Warrantless Arrests

HN4 Absent an exception, a warrantless arrest for a misdemeanor not committed in the officer's presence is illegal. *Tenn. Code Ann. § 40-7-103(a)(1)*.

Criminal Law & Procedure > Commencement of Criminal Proceedings > Arrests > Warrantless Arrests
Criminal Law & Procedure > ... > Warrantless Searches > Vehicle Searches > General Overview

HN5 See *Tenn. Code Ann. § 40-7-103(a)(6)*.

Criminal Law & Procedure > Commencement of Criminal Proceedings > Arrests > Warrantless Arrests

HN6 The scene of the accident, as contemplated by the legislature, does not include a situation in which the arrest occurred at the scene, but only after the driver was required to return there by law enforcement.

Criminal Law & Procedure > ... > Vehicular Crimes > Driving Under the Influence > General Overview
Criminal Law & Procedure > ... > Reviewability > Preservation for Review > General Overview

HN7 An appellant cannot change theories from the trial court to the appellate court.

Criminal Law & Procedure > Preliminary Proceedings > Pretrial Motions & Procedures > Suppression of Evidence

HN8 Only evidence obtained as a result of an illegal seizure should be suppressed.

Counsel: Paul G. Summers, Attorney General and Reporter; R. Stephen Jobe, Assistant Attorney General; William H. Cox III, District Attorney General; and Dean C. Ferraro, Assistant District Attorney General, for the appellant, State of Tennessee.

Mike A. Little, Chattanooga, Tennessee, for the appellee, Jashua Shannon Sides.

Judges: JOE G. RILEY, J., delivered the opinion of the court, in which ALAN E. GLENN, J., joined. JERRY L. SMITH, J., filed a dissenting opinion.

Opinion by: JOE G. RILEY

Opinion

This is a state appeal from the suppression of evidence. The defendant was indicted for driving under the influence (DUI), second offense, and leaving the scene of an accident. The defendant filed a motion to suppress which the trial court granted. In this appeal, the state alleges that the trial court erroneously concluded the defendant was unlawfully arrested, or, in the alternative, the order of suppression was overbroad. Upon review of the record, we modify the order of suppression to allow **[*2]** evidence gathered prior to the unlawful arrest. We remand for further proceedings.

The defendant was indicted for DUI, second offense, and leaving the scene of an accident involving property damage. The trial court suppressed the "breath alcohol test, field sobriety test and any statements made by the Defendant," finding the defendant was unlawfully arrested. The state alleges on appeal that the trial court erred in granting the defendant's motion to suppress. Upon review of the record, we conclude that the suppression order was overbroad, and we modify it so that only the evidence obtained after the defendant's illegal arrest is suppressed. Any evidence obtained prior to his illegal seizure is admissible relative to the charges of leaving the scene of an accident and/or DUI.

FACTS

Officer Joseph E. Kerr testified that he responded to a call on August 25, 1998, regarding an automobile accident. Upon arrival, he observed a single car with its front end in a ditch and the remainder of the vehicle blocking one lane of traffic. The driver of the vehicle was not at the scene. Volunteer firefighter Anthony Travis informed Officer Kerr that while he was in route to the accident **[*3]** scene, he saw a man enter a stopped vehicle but was unable to further describe either the person or the vehicle. Officer Kerr testified that he recognized the wrecked vehicle as belonging to the defendant as a result of an incident which occurred approximately one week prior.

While Kerr was completing the accident report, he recognized a vehicle passing the scene as one that belonged to the defendant's wife. He further observed a passenger in the vehicle who matched the description of the defendant, which he recalled from the incident one week prior. The vehicle proceeded away from the accident scene, but it returned shortly thereafter. As the vehicle passed the scene the second time, Officer Kerr ordered it to stop, went to the passenger's side, and requested the passenger's name. The passenger responded with a name other than defendant's, but since Kerr suspected the passenger was the defendant, Kerr ordered the passenger out of the vehicle and told him to stand near the wrecked vehicle. Subsequently, Officer Kerr returned to the stopped vehicle and asked the driver, Ms. Sides, the name of her passenger. Ms. Sides replied that the passenger was Jashua Sides, the defendant, and **[*4]** she produced his driver's license from between the car's seats.

Officer Kerr returned to the wrecked vehicle and questioned the defendant. The defendant initially told Kerr that his cousin was the driver of the wrecked vehicle, but subsequently admitted that he was the driver. Kerr then arrested the defendant for leaving the scene of an accident.

Officer Kerr further testified that while questioning the defendant, he "thought [he] detected an odor of alcohol, not a strong odor, but an odor of alcohol." After the arrest for leaving the scene of an accident, the defendant was transported to the sheriff's department and submitted to a breathalyzer test. There was no testimony as to the test results, but Officer Kerr testified that he arrested the defendant for DUI after getting the breathalyzer results.

Defense counsel contended at the suppression hearing that, ***HN1*** although the officer had probable cause to secure an arrest warrant for leaving the scene of an accident, he could not arrest the defendant without a warrant since the offense did not occur in the officer's presence. *See* *Tenn. Code Ann. § 40-7-103(a)(1)* **[*5]** . The state argued that the statute ***HN2*** expressly authorizes a warrantless arrest "at the scene of a traffic accident" where the officer has probable cause to believe the person committed a traffic offense. *See* *Tenn. Code Ann. § 40-7-103(a)(6)*.

The trial court rejected the state's argument, finding that *Tenn. Code Ann. § 40-7-103(a)(6)* did not apply since the defendant was "brought back to the scene by somebody else." The trial court concluded the officer did not have the authority to arrest the defendant for leaving the scene of an accident without an arrest warrant. The trial court then ordered the suppression of "the breath alcohol test, field sobriety test and any statements made by the defendant." The state timely filed notice of appeal.

SUPPRESSION OF EVIDENCE

A. Standard of Review

HN3 The findings of fact made by the trial court at the hearing on a motion to suppress are binding upon this Court unless the evidence contained **[*6]** in the record preponderates against them. *State v. England, 19 S.W.3d 762, 766 (Tenn. 2000)*. However, this Court is not bound by the trial court's conclusions of law. *State v. Simpson, 968 S.W.2d 776, 779 (Tenn. 1998)*. The application of the law to the facts found by the trial court are questions of law that this court reviews *de novo*. *State v. Daniel, 12 S.W.3d 420, 423 (Tenn. 2000)*.

B. Suppression Analysis

The trial court suppressed the evidence of the breathalyzer results, any field sobriety tests, and any statements made by the defendant, based on the conclusion that the defendant was not "at the scene" of the accident when he was arrested for leaving the scene of an accident. *See* *Tenn. Code Ann. § 40-7-103(a)(6)*.

In Tennessee, ***HN4*** absent an exception, a warrantless arrest for a misdemeanor not committed in the officer's presence is illegal. *Tenn. Code Ann. § 40-7-103(a)(1)*; *State v. Duer, 616 S.W.2d 614, 615 (Tenn. Crim. App. 1981)*. However, **[*7]** the statute further provides:

HN5 An officer may, without a warrant, arrest a person . . . at the scene of a traffic accident who is the driver of a vehicle involved in such accident when, based on personal investigation, the officer has probable cause to believe that such person has committed an offense under the provisions of title 55, chapters 8 and 10. The provisions of this subdivision shall not apply to traffic accidents in which no personal injury occurs or property damage is less than one thousand dollars ($ 1,000) unless the officer has probable cause to believe that the driver of such vehicle has committed an offense under § 55-10-401 [DUI].

Tenn. Code Ann. § 40-7-103(a)(6).

The defendant argued at the suppression hearing that because he initially fled the scene, he was not arrested "at the scene of a traffic accident;" thus, the warrantless arrest was illegal. In support of the defendant's argument, he argues the applicability of *State v. Folds, 1995 Tenn. Crim. App. LEXIS 167, C.C.A. No. 01 C01-9308-CC-00278, 1995 WL 89701* **[*8]** (Tenn. Crim. App.

filed March 3, 1995, at Nashville) (holding that ***HN6*** "the 'scene of the accident' as contemplated by the legislature when drafting this statute does not include a situation in which the arrest occurred at the scene, but only after the driver was required to return there by law enforcement").

It is apparent from a review of the hearing that the state, defense counsel, and the trial court felt that Officer Kerr had probable cause to believe the defendant left the scene of an accident with property damage in violation of *Tenn. Code Ann. § 55-10-102(a)*. [1] Accordingly, they only addressed whether the arrest occurred at the scene of the accident.

[*9] The record is silent as to whether there was any property damage to the vehicle. We are unable to assume that the state, defense counsel and the trial court were all satisfied that there was property damage over $ 1,000. Since there was no testimony, statements by counsel, argument or remarks by the trial court concerning property damage, we are unable to make this assumption. Since the burden was upon the state at the hearing to establish the applicability of the statute, we are unable to assume facts necessary to establish this essential element.

Regardless, the state in its brief in this court now concedes that the warrantless arrest for leaving the scene of an accident involving property damage was illegal. We see no need to look behind its concession. Due to this concession, we need not analyze further whether the arrest for leaving the scene of an accident was lawful, or whether an officer has the authority to continue to hold a person in custody for such a violation, rather than issue a citation. *See Tenn. Code Ann. § 40-7-118(b)*; *State v. Walker, 12 S.W.3d 460, 464 (Tenn. 2000)*.

Although the state argued at the suppression **[*10]** hearing that probable cause for the arrest was based on the violation of leaving the scene of an accident, it now contends on appeal that the officer had probable cause to arrest the defendant at the scene for DUI. [2] Since an ***HN7*** appellant cannot change theories from the trial court to the appellate court, this ordinarily waives the issue. *State v. Dooley, 29 S.W.3d 542, 549 (Tenn. Crim. App. 2000)*.

[*11] Regardless of waiver, the only testimony relating to alcohol prior to the defendant's arrest at the scene was Officer Kerr's statement, "I thought I detected an odor of alcohol, not a strong odor, but an odor of alcohol." This is insufficient to establish probable cause to arrest the defendant for DUI. This testimony did sufficiently establish the right of the officer to briefly detain the defendant at the scene and administer field sobriety tests or otherwise ascertain defendant's state of sobriety. *See State v. Yeargan, 958 S.W.2d 626, 633 (Tenn. 1997)*. However, the record is silent as to whether field sobriety tests were administered, or whether the officer had any other basis to believe the defendant was impaired. The only testimony establishing probable cause to arrest for DUI was the officer's testimony that he arrested the defendant for DUI after the breathalyzer was administered at the sheriff's department. This was after defendant had been illegally arrested for leaving the scene of an accident.

Therefore, the defendant was illegally detained when he was transported to the sheriff's department. The results of the breathalyzer test administered **[*12]** there are inadmissible.

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[1] Although we question whether Tenn. Code Ann. § 55-10-102 applies to a one-vehicle accident, it is unnecessary for us to address that issue. The state in this court is no longer relying upon the warrantless arrest for leaving the scene of an accident.

[2] We have carefully examined the transcript of the suppression hearing. There was only a brief reference to DUI in the state's argument when the prosecutor stated, "after arresting him on [leaving the scene of the accident] is when he received information on the driving under the influence. Based on that he had probable cause that the defendant committed driving under the influence as well." We conclude it was not the state's position at the hearing that the officer had probable cause to arrest for DUI at the scene of the accident.

Accordingly, the record before the court does not establish probable cause for a DUI arrest at the scene of the accident, and any evidence obtained after the arrest should be suppressed.

C. Overbroad Suppression Order

The state contends that even if the arrest of the defendant at the scene was unlawful, the order of suppression is overbroad. The state notes that the trial court suppressed not only the breathalyzer test, but also field sobriety tests and any statements made by the defendant to the police. The state now contends there was a "great deal of routine, on-the-scene investigation, including interaction between [the defendant] and Officer Kerr, which occurred prior to the arrest," and this evidence could be utilized in this prosecution.

The only issue addressed at the suppression hearing was whether the defendant was properly arrested at the scene of the accident. The state did not attempt to establish probable cause to arrest for DUI at the scene. Likewise, whether or not there was an actual violation of leaving the scene of an accident involving property damages was not litigated. *See*Tenn. Code Ann. § 55-10-102 **[*13]** (property damages in any amount may result in prosecution). [3] The parties only litigated whether there was a valid warrantless arrest, which requires property damages of $ 1,000 or more. *See*Tenn. Code Ann. § 40-7-103(a)(6).

HN8 Only evidence obtained as a result of the illegal seizure should be suppressed. *See generally*State v. Clark, 844 S.W.2d 597, 600 (Tenn. 1992) (citations omitted). We conclude that the on-the- scene stop and questioning of the defendant was proper. Any evidence developed prior to the unlawful arrest need not be suppressed in the event of prosecution for leaving the scene of an accident and/or DUI.

CONCLUSION

Based upon our analysis, we affirm the judgment of the trial **[*14]** court to the extent of suppressing all evidence obtained subsequent to the defendant's illegal arrest at the scene of the accident. The state may utilize any evidence obtained prior to the arrest if it elects to proceed with the prosecution for leaving the scene of an accident and/or DUI.

JOE G. RILEY, JUDGE

Dissent by: JERRY L. SMITH

Dissent

DISSENTING OPINION

I must dissent from the holding of the majority opinion in this case for the following reasons:

First, the State's concession and the majority's acceptance of it notwithstanding, I do not believe the record is sufficient to allow this court to adequately address the issue of the legality of the warrantless arrest of the appellee at the "scene of an accident" pursuant to *Tennessee Code Annotated Section 40-7-103(a)(6)*. In its concession on this point the State asserts that because there was

[3] As stated, we question the applicability of Tenn. Code Ann. § 55-10-102 to a one-vehicle accident. However, that issue is not before us.

no proof addressed at the suppression hearing on the question of the value of the property damage to the appellee's vehicle, a warrantless arrest for leaving the scene of an accident pursuant to *Section 40-7-103(6)* cannot be sustained. It is true that *Section 40-7-103(a)(6)* only allows a warrantless **[*15]** misdemeanor arrest at accident scenes involving property damage over $ 1,000, unless the arrest is for DUI in which case the amount of property damage is irrelevant. However, the reason the State failed in the instant case to put on proof of the amount of property damage is the fact the State, the defense and the trial court were all apparently satisfied that property damage over $ 1,000 was involved.

The sole issue on which the motion to suppress was decided was whether or not the arrest of the appellee was "at the scene of an accident" since he initially fled the scene and was only arrested sometime later when he returned to his wrecked vehicle. [1] I do not believe it fair to hold a party responsible for failing to proffer proof on an issue that was apparently settled to the satisfaction of both litigants and the trial court. See *State v. Anthony E. Collier, 2001 Tenn. Crim. App. LEXIS 236*, No. M1999-01408-CCA-R3-CD, (Tenn. Crim. App., opinion filed March 16 at Nashville) (holding party will not be responsible for putting on proof where action of the trial judge, although erroneous, sustains the position of the party).

[*16] I would therefore review the propriety of the appellee's arrest on the question litigated below, that is whether the warrantless arrest of the appellee occurred "at the scene of an accident."

The appellee argues that his warrantless arrest was unlawful because it was not at the scene of the accident within the meaning of *Tennessee Code Annotated Section 40-7-103(a)(6)*, and that the section is thus inapplicable to his situation. In other words, when he returned to his wrecked vehicle there was no longer an "accident scene" within the meaning of *Section 40-7-103(6)*. The appellee bases his argument on this Court's holding in *State v. Thad Thomas Folds, 1995 Tenn. Crim. App. LEXIS 167, CCA No. 01 C01-9308-CC-00278, 1995 WL 89701* (Tenn. Crim. App. at Nashville, Mar. 3, 1995,) (holding that "the scene of the accident' as contemplated by the legislature when drafting this statute does not include a situation in which the arrest occurred at the scene, but only after the driver was required to return there by law enforcement"). In my opinion the appellee's reliance on Folds is misplaced for at least two reasons. First, Folds dealt **[*17]** with a situation where the defendant was returned by police officers to a place where they believed they could arrest him without a warrant. In the instant case the appellee returned to the accident scene of his own volition without any prompting or compulsion by police. Secondly, and more importantly, I believe Folds to be incorrectly decided. In Folds, this Court stated:

> The rationale and the scope of the statute becomes clear when one considers the purposes served by the misdemeanor exception to the warrant requirement. When a police officer is called to the scene of an automobile accident, the officer usually finds a fait accompli. Even if one of the drivers were intoxicated, under the general warrant requirement, the officer could not make a warrantless arrest since the officer did not see the driver drive. Since an intoxicated driver is a danger to the driver's self and to

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[1] The majority concludes that, due to the State's concession, i.e., that a warrantless arrest for leaving the scene of an accident was improper, no further analysis is warranted regarding whether a citation in lieu of arrest should have been issued. I agree that no analysis of the citation issue is warranted, not because of the State's concession, but because this issue was not litigated below. Thus, we do not know why the appellant was taken into custody rather than a citation issued. It is noteworthy, however, that the citation requirement for misdemeanors has exceptions in certain cases, such as the necessity of preventing further criminal activity, the failure of the accused to provide satisfactory identification and the need to maintain public safety. Tenn. Code Ann. § 40-7-118.

> others, the state has a genuine interest in restraining that driver until arrangements ensuring the safety of the public and the driver are made. Moreover, blood alcohol levels change over time. Chemical testing must be performed as soon as possible so that the results will reflect the driver's actual blood **[*18]** alcohol level at the time the accident occurred. Time spent seeking an arrest warrant would render the evidence unreliable and jeopardize public safety.
>
> These same policy considerations do not exist at times remote from the actual occurrence. Appellee was not at the scene when the police arrived. He presented no danger to the safety of the motoring public. Approximately an hour had passed. The results of a blood alcohol test could not accurately reflect the level that existed at the time he drove off the road. The purposes for the statutory exception were no longer served by an immediate, warrantless arrest.

1995 WL 89701 at *5.

Thus it appears that Folds is based on a finding that Section 40-7-106(a)(6) permits immediate warrantless arrests solely for the remedial purposes of protecting public safety when a potential defendant is intoxicated, and preventing the dissipation of blood alcohol content so that chemical testing will accurately reflect the defendant's blood alcohol content at the time of the accident. I find this reasoning to be flawed. If the purposes of *Section 40-7-103(a)(6)* are as limited as indicated by the opinion in Folds, one wonders why **[*19]** the statute by its terms embraces any offense under title 55, chapters 8 and 10, including the offense of leaving the scene of an accident involving property damage. See *Tenn. Code Ann. § 55-10-102(a)*. If, as the Folds opinion maintains, the legislature were only concerned with the public safety and evidentiary concerns attendant to DUI cases it would have limited *Section 40-7-103(a)(6)* to DUI cases only.

Furthermore, while I agree that police should not be able to involuntarily return drivers to the scene of an accident for the purpose of affecting a warrantless arrest, Folds is not so limited. A fair reading of Folds would lead the reader to the conclusion that the crime of leaving the scene of an accident is never subject to a warrantless arrest since by its definition the crime requires the driver to leave the accident scene. This is clearly contrary to the explicit dictates of the legislature that *Section 40-7-103(a)(6)* embraces *Section 55-10-102(a)* and allows warrantless arrests for leaving the scene of an accident if the driver can be found at the accident scene and police have probable cause to believe the driver has committed one of the offenses **[*20]** in title 55, chapters 8 and 10. By necessity *Section 40-7-103(a)(6)* can only come into play when the offense of leaving the scene of an accident involves initial flight by the driver of the vehicle involved coupled with a subsequent return to the scene. For these reasons I am of the opinion that Folds is incorrectly decided and should be overruled. I would find that the warrantless arrest of the appellee leaving the scene of an accident was proper and that all evidence recovered as the result of that arrest including evidence of DUI should be admitted against the appellee.

I also dissent from the holding of the majority that police lacked probable cause to believe the appellee was driving under the influence of an intoxicant when arrested. In this case the appellee ran his vehicle into a ditch. When he returned to the scene of the wreck, the appellee lied about his identity and initially denied driving the car. The appellee subsequently admitted he was the driver, and the officer at the scene smelled alcohol on the appellee's breath. Although the arresting officer did not charge the Appellee with DUI until after a breathalyser test was

administered at the Sheriff's Department, I **[*21]** think there was sufficient evidence in this record for DUI to establish probable cause to arrest the appellee for DUI and that all evidence obtained as a result thereof is admissible.

For these reasons stated above I would reverse the judgment of the trial court suppressing the evidence in this case and remand this case for trial on charges of leaving the scene of an accident involving property damage and DUI. [2]

JERRY L. SMITH, JUDGE

[2] I agree with the assertion in footnote 1 of the majority opinion that it is questionable whether Tennessee Code Annotated section 55-10-102 applies to single car accidents. However, this question was not litigated below and we need not address it for purposes of this appeal.

No *Shepard's* Signal™
As of: May 21, 2014 10:37 AM EDT

Weems v. State

Court of Appeals of Texas, Fourth District, San Antonio
May 14, 2014, Delivered; May 14, 2014, Filed
No. 04-13-00366-CR

Reporter: 2014 Tex. App. LEXIS 5109

Daniel James WEEMS, Appellant v. The STATE of Texas, Appellee

Notice: PUBLISH

Prior History: [*1] From the 226th Judicial District Court, Bexar County, Texas. Trial Court No. 2012CR6570. Honorable Sid L. Harle, Judge Presiding.

Disposition: REVERSED AND REMANDED.

Core Terms

blood, mandatory, warrant requirement, warrantless, exigency, alcohol, arrest, intoxicate, transport, totality of the circumstances, exigent circumstances, drunk-driving, drink, implied consent, warrantless search, driving, court of appeals, blood test, exclusionary, concentrate, specimen, police officer, trial court, good faith, categorical, dissipate, passenger, crash, suppress, breath

Judges: Opinion by: Karen Angelini, Justice. Sitting: Catherine Stone, Chief Justice, Karen Angelini, Justice, Luz Elena D. Chapa, Justice.

Opinion by: Karen Angelini

Opinion

REVERSED AND REMANDED

At issue in this appeal is whether the warrantless blood draw administered to Daniel James Weems violated his rights under the *Fourth Amendment* to the Constitution. Because we hold that Weems's rights under the *Fourth Amendment* were violated, we reverse the judgment of the trial court and remand for a new trial.

Background

Weems was charged with the felony offense of driving while intoxicated with a repeat felony offender enhancement allegation. At trial, the arresting officer, Jimmy Bustamante of the Bexar County Sheriff's Office, testified that on June 4, 2011, around midnight, he was dispatched for a major automobile crash. A vehicle had hit a telephone pole and was turned upside down on its roof. Witnesses reported that the driver, who was wearing a Harley Davidson shirt and tan pants, ran from the scene. The passenger of the vehicle had been transported to the hospital [*2] by ambulance.

The driver, Weems, was found about a quarter mile east from the crash site hiding underneath a car. Weems had cuts, scrapes, and bruises consistent with the crash. Officer Bustamante testified that a strong odor of alcohol emanated from his breath, and Weems had bloodshot eyes. Weems was unsteady and swaying, and had slurred speech. The officer handcuffed Weems and read the DIC-24 form requesting a breath or blood specimen. Weems refused to provide a specimen. According to Officer Bustamante, no field sobriety tests were performed because Weems had been involved in a car crash and was complaining of back and neck pains. Because of his medical complaints, Weems was transported to the hospital, and a mandatory blood draw was taken there, instead of at the San Antonio Magistrate's Office. No warrant was procured for the blood draw. Officer Bustamante testified that a mandatory blood draw was taken because Weems was driving a car involved in a crash and the passenger was injured. According to Officer Bustamante, two to three hours passed between the time of the crash and the time a specimen of Weems's blood was taken.

The passenger of the car, Scott Noland, also testified. [*3] According to Noland, on June 4, 2011, he and Weems had been drinking beer and working on Weems's car. At around 10:45 p.m., they went down the street to a bar. Weems drove. At the bar, they each had two mixed drinks. They left the bar around 11:30 p.m., intending to go back to Weems's home. Weems was driving the car when he slowly started to veer off the road and a second later we were just tumbling around and spinning around and the accident happened. The vehicle had flipped over on to its roof and the front end of the car was facing towards the road. Noland got out of the car, and some people who had been passing by helped him to sit down. Noland testified that Weems also got out of the car and then he noticed that Weems had left the scene. At the hospital, Noland had to get some stiches and staples on the side of [his] head.

Veronica Hargrove, who is employed at the Bexar County Medical Examiner's Office in the toxicology lab, testified that at 2:30 a.m., Weems's blood ethanol concentration was 0.18 grams per deciliter. According to Hargrove, on average, a person eliminates alcohol at about 0.02 grams per deciliter per hour. So, on average, a person who was at 0.18 at 2:30 **[*4]** a.m. and did not drink any additional alcohol would have had a blood ethanol concentration of 0.24 at 11:30 p.m. Hargrove testified that because Weems took his last drink at around 11:30 p.m. and his blood was drawn at 2:30 a.m., if he only had a couple of drinks at 11:30, it would be unlikely that [he was] below 0.08 at the time of the accident. Hargrove estimated that Weems had consumed about twelve drinks.

After hearing the evidence, the jury found Weems guilty of driving while intoxicated. Weems appeals.

Discussion

Weems argues the trial court erred in failing to suppress the results of the warrantless blood draw. Before trial, Weems filed a pretrial motion to suppress, but there was no pretrial hearing and the trial court did not rule on the pretrial motion. Before Hargrove testified during trial, however, Weems moved to suppress any evidence related to the blood draw, explaining that the Supreme Court had that day issued its opinion in *Missouri v. McNeely, 133 S. Ct. 1552, 185 L. Ed. 2d 696 (2013)*. The trial court declined to suppress any evidence.[1]

A. Warrantless searches are not reasonable under the Fourth Amendment unless they fall within a recognized exception to the warrant requirement.

The *Fourth Amendment* provides that "[t]he right of the people to be secure in their persons, houses, papers, and effects, against unreasonable searches and seizures, shall not be violated, and no Warrants shall issue, but upon probable cause." *U.S. Const. amend. IV*. The Supreme Court has held that a warrantless search of the person is reasonable only if it falls within a recognized exception. *See, e.g., McNeely, 133 S. Ct. at 1558; United States v. Robinson, 414 U.S. 218, 224, 94 S. Ct. 467, 38 L. Ed. 2d 427 (1973)*. Exigent circumstances is one such well-recognized exception. *McNeely, 133 S. Ct. at 1558*. The State argues in this case that the statutory scheme found in the Texas Transportation Code, which implies consent of a driver and mandates blood draws under certain scenarios, is "a reasonable substitute" for the Fourth Amendment's **[*6]** warrant requirement. In other words, it argues that this statutory scheme should be considered an exception to the warrant requirement. We hold that it is not.

B. Does Texas's implied consent and mandatory blood draw statutory scheme constitute an exception to the Fourth Amendment's warrant requirement?

The implied consent statute, found in *section 724.011(a) of the Texas Transportation Code* provides the following:

> If a person is arrested for an offense arising out of acts alleged to have been committed while the person was operating a motor vehicle in a public place, or a watercraft, while intoxicated . . .., the person is deemed to have consented, subject to this chapter, to submit to the taking of one or more specimens of the person's breath or blood for analysis to determine the alcohol concentration or the presence in the person's body of a controlled substance, drug, dangerous drug, or other substance.

Tex. Transp. Code Ann. § 724.011(a) (West 2011). *Section 724.013*, in turn, states that "[e]xcept as provided by *section 724.012(b)*, a specimen may not be taken if a person refuses to submit to the taking of a specimen designated by a peace officer." *Id. § 724.013*. *Section 724.012(b)* **[*7]** requires a peace officer to take a specimen of a person's breath or blood, even if the person refuses, if the person is arrested for an intoxication offense under chapter 49 of the Penal Code involving the operation of a motor vehicle or watercraft and

> (1) the person was the operator of a motor vehicle or a watercraft involved in an accident that the officer reasonably believes occurred as a result of the offense and, at the time of the arrest, the officer reasonably believes that as a direct result of the accident: (A) an individual has died or will die; (B) an individual other than the person has suffered serious bodily injury; or (C) an individual other than the person has suffered bodily injury and been transported to a hospital or other medical facility for medical treatment;
>
> (2) the offense for which the officer arrests the person is [driving while intoxicated with a child passenger]; or

[1] On appeal, the State argues Weems did not preserve this issue for appeal. We disagree and hold that Weems preserved the issue by arguing his suppression **[*5]** motion before Hargrove testified. *See Everitt v. State*, 407 S.W.3d 259, 263 (Tex. Crim. App. 2013) (criticizing the court of appeals's "parsing of appellant's objections" as "the kind of hyper-technical analysis that we have repeatedly rejected").

> (3) at the time of the arrest, the officer possesses or receives reliable information from a credible source that the person (A) has been previously convicted of or placed on community supervision for [driving while intoxicated with a child passenger, intoxication assault, or intoxication manslaughter]; **[*8]** or (B) has been on two or more occasions previously convicted of or placed on community supervision for [driving while intoxicated, flying while intoxicated, boating while intoxicated, or assembling or operating an amusement ride while intoxicated].

Id. § 724.012(b). In this case, Officer Bustamante testified that the blood draw was administered because a person other than Weems suffered bodily injury and was transported to a hospital for medical attention. The State also points out that the THP-51 form, which was admitted in evidence, indicates that the blood draw was also ordered because Weems had two prior DWI convictions.

In support of its argument that the warrantless blood draw was reasonable pursuant to the implied consent and mandatory blood draw statutes, the State relies on the following dicta from *Beeman v. State, 86 S.W.3d 613, 615 (Tex. Crim. App. 2002)*:

> The implied consent law does just that—it implies a suspect's consent to a search in certain instances. *This is important when there is no search warrant, since it is another method of conducting a constitutionally valid search.* On the other hand, if the State has a valid search warrant, it has no need to obtain the suspect's **[*9]** consent.
>
> *The implied consent law expands on the State's search capabilities by providing a framework for drawing DWI suspects' blood in the absence of a search warrant.* It gives officers an additional weapon in their investigative arsenal, enabling them to draw blood in certain limited circumstances *even without a search warrant.*

Id. (emphasis added). Although this language is dicta, the Texas Court of Criminal Appeals did recognize in *Beeman* that the implied consent statute expanded the State's authority to draw a DWI suspect's blood in the absence of a warrant.

We relied on this dicta in *Beeman* in *Aviles v. State, 385 S.W.3d 110, 116 (Tex. App.—San Antonio 2012), vacated, 134 S. Ct. 902, 187 L. Ed. 2d 767 (2014)*, where we held that a warrantless blood draw of a DWI suspect that was conducted according to the prescriptions of the Transportation Code did not violate the suspect's rights under the *Fourth Amendment*. In so holding, we first quoted the dicta in *Beeman* for the proposition that the implied consent law allows officers to draw blood in certain limited circumstances even without a search warrant. *Id. at 115*. We reasoned that "[t]his situation, as outlined in *section 724.012*, is one of the 'circumstances' **[*10]** the Texas Court of Criminal Appeals has held where blood may be drawn without a search warrant." *Id. at 116* (citing *Beeman, 86 S.W.3d at 616*). We concluded that whether the officer could have obtained a warrant before authorizing the blood draw was immaterial given the mandate of *section 724.012(b)(3)(B)*. *Id. at 116*. Thus, we held that the warrantless seizure of Aviles's blood was conducted according to the prescriptions of the Transportation Code, and without violating Aviles's Fourth Amendment rights. *Id.* The Texas Court of Criminal Appeals denied Aviles's petition for discretionary review. However, on January 13, 2014, the Supreme Court granted certiorari and vacated our judgment. *Aviles v. State*, 134 S. Ct. 902, 187 L. Ed. 2d 767 (2014). It then remanded the case to this court for further consideration in light of *Missouri v. McNeely*. *Id.*

C. The Supreme Court's decision in McNeely prohibits per se rules that justify an exception to the Fourth Amendment's warrant requirement.

In *McNeely, 133 S. Ct. at 1556*, the Supreme Court addressed whether the natural metabolization of alcohol in the bloodstream presents a *per se* exigency that justifies an exception to the Fourth Amendment's warrant requirement **[*11]** for nonconsensual blood testing in all drunk-driving cases. The Court concluded that it did not and rejected the State's suggested *per se* rule. *Id.* Instead, the Court held that consistent with general Fourth Amendment principles, exigency in this context must be determined case by case based on the totality of the circumstances. [2] *Id.*

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[2] Justice Sotomayor was the author of *McNeely*. Parts I, II-A, II-B, and IV of the opinion were joined by Justices Scalia, Kennedy, Ginsburg, and Kagan and thus constitute the majority opinion of the Court. Parts II-C and III were joined only by Justices Scalia, Ginsburg, and Kagan and thus constitute a plurality opinion. Justice Kennedy wrote a separate concurrence. Chief Justice Roberts wrote an opinion concurring in part and dissenting in part, which was joined by Justices Breyer and Alito. Justice Thomas wrote a dissenting opinion. The plurality portions of *McNeely* are directed toward Chief Justice Robert's opinion

McNeely dealt with a typical DWI traffic stop where the driver, McNeely, failed field-sobriety tests and refused to use a portable breath-test device **[*13]** to measure his blood-alcohol concentration (BAC). Id. at 1557. After McNeely was placed under arrest for DWI, he was taken to a nearby hospital for blood testing. No warrant was obtained. *Id.* Less than thirty minutes after McNeely was first stopped by the officer, his blood was taken without his consent by a hospital lab technician. *Id.* The results of the blood test measured McNeely's BAC at 0.154. *Id.*

McNeely moved to suppress the blood test results, arguing the warrantless blood draw violated his rights under the Fourth Amendment. *Id.* The State argued the exigency exception to the warrant requirement applied. *Id.* The Supreme Court granted certiorari to resolve a split of authority on the question whether the natural dissipation of alcohol in the bloodstream establishes a *per se* exigency that suffices on its own to justify an exception to the warrant requirement for nonconsensual blood testing in drunk-driving investigations. Id. at 1558.

The Court first emphasized that in Schmerber v. California, 384 U.S. 757, 86 S. Ct. 1826, 16 L. Ed. 2d 908 (1966), it had concluded (1) the warrant requirement applied generally to searches that intrude into the human body, and (2) absent an exception to the warrant requirement, **[*14]** a compelled blood draw was unconstitutional. *See* McNeely, 133 S. Ct. at 1558-59 (discussing *Schmerber*). The *McNeely* Court stressed that in holding the exigency exception to the warrant requirement authorized the warrantless compelled blood draw, the Court in *Schmerber* looked at the totality of circumstances. Id. at 1559. Thus, the *McNeely* Court emphasized that its analysis in *Schmerber* fit comfortably within [its] case law applying the exigent circumstances exception. Id. at 1560. The Court explained that "[i]n finding the warrantless blood test reasonable in *Schmerber*, [it had] considered all of the facts and circumstances of the particular case and carefully based [its] holding on those specific facts." *Id.*

After reaffirming its holding in *Schmerber*, which it emphasized was based on the totality of the circumstances presented in that case, the *McNeely* Court then criticized the State for proposing a *per se* rule: "The State contends that whenever an officer has probable cause to believe an individual has been driving under the influence of alcohol, exigent circumstances will necessarily exist because BAC evidence is inherently evanescent." *Id.* As a result, the State claims that so **[*15]** long as the officer has probable cause and the blood test is conducted in a reasonable manner, *it is categorically* reasonable for law enforcement to obtain the blood sample without a warrant." *Id.* (emphasis added). The Court recognized that "as a result of the human body's natural metabolic processes, the alcohol level in a person's blood begins to dissipate once the alcohol is fully absorbed and continues to decline until the alcohol is eliminated." *Id.* Thus, "because an individual's alcohol level gradually declines soon after he stops drinking, a significant delay in testing will negatively affect the probative value of the results." Id. at 1561. The Court emphasized that this "fact was essential" to its holding in *Schmerber*, as it had recognized in *Schmerber* "that, under the circumstances, further delay in order to secure a warrant after the time spent investigating the scene of the accident and transporting the injured suspect to the hospital to receive treatment would have threatened the destruction of evidence." *Id.* But, the Court concluded that it did not follow that it "should depart from careful case-by-case assessment of exigency and adopt *the categorical rule* proposed by **[*16]** the State and its amici." *Id.* (emphasis added). According to the Court, "[i]n those drunk-driving investigations where police officers can reasonably obtain a warrant before a blood sample can be drawn without significantly undermining the efficacy of the search, the Fourth Amendment mandates that they do so." *Id.* While the Court did "not doubt that some circumstances will make obtaining a warrant impractical such that the dissipation of alcohol from the bloodstream will support an exigency justifying a properly conducted warrantless blood test," "such circumstances are reasons to decide each case on its facts," "not to accept the considerable overgeneralization that a *per se* rule would reflect." *Id.* (citations omitted).

The Court stressed that unlike "circumstances in which the suspect has control over easily disposable evidence," "BAC evidence from a drunk-driving suspect naturally dissipates over time in a gradual and relatively predictable

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that he would adopt a *per se* rule, just a different one from the State. In Part III of *McNeely*, the plurality notes that the general importance of the government's interest in eradicating DWI "does not justify departing from the warrant **[*12]** requirement without showing exigent circumstances that make securing a warrant impractical in a particular case." McNeely, 133 S. Ct. at 1565. The plurality notes that states have a "broad range of legal tools to enforce their drunk-driving laws and to secure BAC evidence without undertaking warrantless nonconsensual blood draws." Id. at 1566. As an example, the plurality notes that all fifty states "have adopted implied consent laws that require motorists, as a condition of operating a motor vehicle within the [s]tate, to consent to BAC testing if they are arrested or otherwise detained on suspicion of a drunk-driving offense." *Id.* "Such laws impose significant consequences when a motorist withdraws consent: typically the motorist's driver's license is immediately suspended or revoked, and most [s]tates allow the motorist's refusal to take a BAC test to be used as evidence against him in a subsequent criminal prosecution." *Id.* Thus, the states have tools to combat drunk driving without having to resort to nonconsensual blood draws. *See id.*

manner. *Id.* Moreover, because a police officer must typically transport a drunk-driving suspect to a medical facility and obtain the assistance of someone with appropriate medical training before conducting a blood test, some delay between the **[*17]** time of the arrest or accident and the time of the test is inevitable regardless of whether police officers are required to obtain a warrant. *Id.*

The Court further emphasized that the State's proposed *per se* rule fails to account for advances in the 47 years since *Schmerber* was decided that allow for the more expeditious processing of warrant applications, particularly in contexts like drunk-driving investigations where the evidence offered to establish probable cause is simple. *Id. at 1561-62*. Well over a majority of [s]tates allow police officers or prosecutors to apply for search warrants remotely through various means, including telephonic or radio communication, electronic communication such as e-mail, and video conferencing. *Id. at 1562*. And in addition to technology-based developments, jurisdictions have found other ways to streamline the warrant process, such as by using standard-form warrant applications for drunk-driving investigations. *Id.* The Court explained that it was by no means claiming that telecommunications innovations have, will, or should eliminate all delay from the warrant-application process. *Id.* Warrants inevitably take some time for police officers **[*18]** or prosecutors to complete and for magistrate judges to review. *Id.* But technological developments that enable police officers to secure warrants more quickly, and do so without undermining the neutral magistrate judge's essential role as a check on police discretion, are relevant to an assessment of exigency. *Id. at 1562-63*. That is particularly so in this context, where BAC evidence is lost gradually and relatively predictably. *Id. at 1563*. The Court concluded with the following: In short, while the natural dissipation of alcohol in the blood may support a finding of exigency in a specific case, as it did in *Schmerber, it does not do so categorically*. *Id.* (emphasis added). Whether a warrantless blood test of a drunk-driving suspect is reasonable *must be determined case by case based on the totality of the circumstances*. *Id.* (emphasis added).

In considering the totality of circumstances in its case, the *McNeely* Court noted that the State had relied on a *per se, categorical* approach and had not created a record supporting exigency in this particular case. In his testimony before the trial court, the arresting officer did not identify any other factors that would suggest he **[*19]** faced an emergency or unusual delay in securing a warrant. *Id. at 1567*. He testified that he made no effort to obtain a search warrant before conducting the blood draw even though he was 'sure' a prosecuting attorney was on call and even though he had no reason to believe that a magistrate judge would have been unavailable. *Id.* The officer also acknowledged that he had obtained search warrants before taking blood samples in the past without difficulty. *Id.* He explained that he elected to forgo a warrant application in this case only because he believed it was not legally necessary to obtain a warrant. *Id.* The Court noted that factors present such as the procedures in place for obtaining a warrant or the availability of a magistrate judge, may affect whether the police can obtain a warrant in an expeditious way and therefore may establish an exigency that permits a warrantless search. *Id. at 1568*. The relevant factors in determining whether a warrantless search is reasonable, including the practical problems of obtaining a warrant within a timeframe that still preserves the opportunity to obtain reliable evidence, will no doubt vary depending upon the circumstances in the **[*20]** case. *Id.*

The Court reasoned that [b]ecause this case was argued on the broad proposition that drunk-driving cases present a *per se* exigency, the arguments and the record do not provide the Court with an adequate analytic framework for a detailed discussion of all the relevant factors that can be taken into account in determining the reasonableness of acting without a warrant. *Id.* The Court concluded with its holding that in drunk-driving investigations, the natural dissipation of alcohol in the bloodstream does not constitute an exigency in every case sufficient to justify conducting a blood test without a warrant. *Id.*

C. In light of McNeely, Texas's implied consent and mandatory blood draw statutory scheme cannot be considered an exception to the Fourth Amendment's warrant requirement.

We must now consider the effect the Supreme Court's decision to remand *Aviles* in light of *McNeely* has on our holding in *Aviles* that a warrantless blood draw of a DWI suspect, which was conducted according to the prescriptions of the Transportation Code, does not violate the suspect's rights under the *Fourth Amendment*. This determination necessarily affects the result in this case.

The State urges **[*21]** that the facts of *McNeely* differ from those presented in *Aviles*. Indeed, there are factual distinctions to be made between *Aviles* and *McNeely*. *Aviles* concerned Texas's implied consent and mandatory blood draw statutes while *McNeely* concerned the exigency exception to the warrant requirement. And, before *Aviles* was vacated and remanded in light of *McNeely*, many courts of appeal had made such a factual distinction, holding that because *McNeely* concerned the exigency exception, it was not applicable to the implied consent and mandatory blood draw statutes. *See Reeder v.*

State, No. 06-13-00126-CR, 2014 Tex. App. LEXIS 147, 2014 WL 60162 (Tex. App.—Texarkana Jan. 8, 2014, reh'g granted) (reasoning that *McNeely* did not apply to mandatory blood draw statute because *McNeely* dealt with the exigent circumstances exception to the warrant requirement); Smith v. State, No. 13-11-00694-CR, 2013 Tex. App. LEXIS 13403, 2013 WL 5970400 (Tex. App.—Corpus Christi Oct. 13, 2013, op. withdrawn & appeal resubmitted) (reasoning *McNeely* did not invalidate Texas's implied consent statute but merely clarified the exigency exception). Once *Aviles* was remanded in light of *McNeely*, these courts decided to reconsider their previous opinions. *See* Reeder, 2014 Tex. App. LEXIS 147, 2014 WL 60162 **[*22]** (motion for rehearing granted); Smith, 2013 Tex. App. LEXIS 13403, 2013 WL 5970400 (opinion withdrawn and appeal resubmitted). We conclude that *McNeely*'s prohibition on *per se, categorical* exceptions to the Fourth Amendment's warrant requirement did not solely apply to the exigency exception, but also applies to the facts presented in *Aviles*.

One of our sister courts has recently come to the same conclusion. In Sutherland v. State, No. 07-12-00289-CR, 2014 Tex. App. LEXIS 3694, 2014 WL 1370118, at *1-2 (Tex. App.—Amarillo Apr. 7, 2014, no pet. h.), the appellant was arrested for DWI and taken for a warrantless blood draw pursuant to section 724.012(b)(3)(B) of the mandatory blood draw statute. The appellant argued that regardless of section 724.012(b)(3)(B)'s mandatory language, the Fourth Amendment requires that a warrantless search be supported by an established exception to the warrant requirement. 2014 Tex. App. LEXIS 3694, [WL] at *2. The Amarillo Court of Appeals noted that some courts of appeal had relied on the implied-consent principles in *Aviles* to distinguish the exigent-circumstances principles of *McNeely* from those cases at bar examining mandatory blood draws under section 724.012(b)(3)(B). 2014 Tex. App. LEXIS 3694, [WL] at *8. It emphasized that such reliance on *Aviles* ended **[*23]** when it was vacated and remanded for further consideration in light of *McNeely*. *Id.* From the Supreme Court's action, the Amarillo Court of Appeals concluded that distinguishing *McNeely* based on the fact that it involved exigent circumstances and not a mandatory blood draw statute was no longer a viable position. *Id.* The court of appeals reasoned that [b]y vacating and remanding *Aviles*, it would seem that the United States Supreme Court has rejected any position that would treat section 724.012(b)(3)(B) as an exception to the Fourth Amendment, separate and apart from the traditional, well-established exceptions." *Id.* The court concluded that regardless of the mandatory tone of section 724.012(b)(3)(B)'s directive to officers, it appears there must still be exigent circumstances that would justify a warrantless search of the suspect's blood. *Id.*

Similarly, the Corpus Christi Court of Appeals held in State v. Villarreal, No. 13-13-00253-CR, 2014 Tex. App. LEXIS 645, 2014 WL 1257150, at *11 (Tex. App.—Corpus Christi Jan. 23, 2014, no pet. h.), that while the mandatory blood draw statute required the officer to obtain a breath or blood sample, it did not require the officer to do so without first obtaining a **[*24]** warrant. The court noted that the mandatory blood draw statute "does not address or purport to dispense with the Fourth Amendment's warrant requirement for blood draws." *Id.* The court further stressed that neither the Supreme Court nor the Texas Court of Criminal Appeals had "recognized the repeat offender provision of the mandatory blood draw law . . . as a new exception to the Fourth Amendment's warrant requirement separate and apart from the consent exception and the exception for exigent circumstances." *Id.* Thus, the court concluded "that the constitutionality of the repeat offender provision of the mandatory blood draw law must be based on the previously recognized exceptions to the Fourth Amendment's warrant requirement." *Id.*

We agree with both the Amarillo and the Corpus Christi Court of Appeals that the implied consent and mandatory blood draw statutes are not exceptions to the Fourth Amendment's warrant requirement. The State urges that we balance the public and private interests that are implicated in serious DWI cases and find that Texas's mandatory blood draw statute, section 724.012(b), is a reasonable substitute for the Fourth Amendment's warrant requirement. *McNeely*, **[*25]** however, clearly proscribed what it labeled *categorical* or *per se* rules for warrantless blood testing, emphasizing over and over again that the reasonableness of a search must be judged based on the totality of the circumstances presented in each case. *See* McNeely, 133 S. Ct. at 1560-63. Texas's implied consent and mandatory blood draw statutes clearly create such categories or per se rules that the Supreme Court proscribed in *McNeely*. *See* TEX. TRANSP. CODE ANN. §§ 724.011(a), 724.012(b). These statutes do not take into account the totality of the circumstances present in each case, but only consider certain facts. *See id.* Thus, we hold that the implied consent and mandatory blood draw statutory scheme found in the Transportation Code are not exceptions to the warrant requirement under the Fourth Amendment. To be authorized, the State's warrantless blood draw of Weems must be based on a well-recognized exception to the Fourth Amendment.

D. Did exigent circumstances justify the warrantless blood draw?

As an alternative argument, the State also argues that exigent circumstances existed in this case to support the warrantless blood draw under the totality of the circumstances. We disagree. **[*26]** As in *McNeely*, this

record does not support exigent circumstances, as this record was based on the officer relying on the mandatory blood draw and implied consent statutes to authorize the blood draw. *See McNeely, 133 S. Ct. at 1567* (explaining because the State had relied on a *per se* approach, the arresting officer did not identify any other factors that would suggest he faced an emergency or unusual delay in securing a warrant). The State argues that because this case involved an accident, these facts are like those found permissible in *Schmerber*. However, as noted in *McNeely*, much technological advancement has occurred since *Schmerber* was decided in 1966. *See McNeely, 133 S. Ct. at 1561-62*. In this case, the arresting officer testified that (1) he made no effort to obtain a warrant; (2) there were other officers present at the scene; (3) there was an accident, (4) the passenger was injured and taken to the hospital, and (5) the driver also complained of being injured and was taken to the hospital. The officer testified that because the hospital was busy with accident victims that night, it took three hours for blood to be drawn from Weems. The record also reflects that Weems was **[*27]** arrested in San Antonio, a large city. The record, however, does not reflect other factors that would be relevant under the totality of the circumstances, including procedures in place for obtaining a warrant or the availability of a magistrate judge and the practical problems of obtaining a warrant within a timeframe that still preserves the opportunity to obtain reliable evidence. *McNeely, 133 S. Ct. at 1568*. Therefore, this record does not show that under the totality of the circumstances, the warrantless blood draw was justified by the exigency circumstances exception to the Fourth Amendment's warrant requirement.

E. Good Faith of Officer

Finally, the State argues that the evidence should not be excluded pursuant to the federal exclusionary rule or pursuant to *article 38.23 of the Texas Code of Criminal Procedure* because the arresting officer relied on the implied consent statute and mandatory blood draw statute in good faith. Under the federal exclusionary rule, if a law enforcement officer relies in good faith on a statute authorizing his warrantless search and the statute is later determined to be unconstitutional, the exclusionary rule does not apply. *Illinois v. Krull, 480 U.S. 340, 342, 355, 107 S. Ct. 1160, 94 L. Ed. 2d 364 (1987)*. **[*28]** However, constraints do apply to the exception to the exclusionary rule. A statute cannot support objectively reasonable reliance if, in passing the statute, the legislature wholly abandoned its responsibility to enact constitutional laws. *Id. at 355*. Nor can a law enforcement officer be said to have acted in good-faith reliance upon a statute if its provisions are such that a reasonable officer should have known that the statute was unconstitutional. *Id.*

First, we note that the implied consent and mandatory blood draw statutes do not explicitly provide for a warrantless search. *See Villarreal, 2014 Tex. App. LEXIS 645, 2014 WL 1257150, at * 11* (explaining that the mandatory blood draw statute does not address or purport to dispense with the Fourth Amendment's warrant requirement for blood draws). Second, we note that there is no such good faith exception found in Texas's exclusionary rule — and Texas can provide more protection to a suspect than federal law. *Article 38.23* provides for an exception to the exclusionary rule only when an officer relies in good faith *upon a warrant* issued by a neutral magistrate based on probable cause. *See* TEX. CODE CRIM. PROC. ANN. art. 38.23(b) (West 2005). It says nothing **[*29]** about an officer's reliance in good faith on a statute. Therefore, we hold that the exclusionary rule applies in this case.

F. Harm

Because the warrantless mandatory blood draw violated Weems's rights under the *Fourth Amendment*, we must reverse the judgment unless we determine beyond a reasonable doubt that the error did not contribute to the conviction or punishment. TEX. R. APP. P. 44.2(a). The jury was instructed the following in this case:

> Intoxicated means not having the normal use of mental or physical faculties by reason of the introduction of alcohol, a controlled substance, a drug, a dangerous drug, a combination of two or more of those substances, or any other substance into the body; *or having an alcohol concentration of 0.08 or more.*

(emphasis added). Veronica Hargrove of the Bexar County Medical Examiner's Office testified that Weems's blood ethanol concentration was 0.18 grams per deciliter at 2:30 a.m. According to Hargrove, on average, a person who was at 0.18 at 2:30 a.m. and did not drink any more alcohol would have a blood ethanol concentration of 0.24 at 11:30 p.m. Hargrove testified that because Weems took his last drink at around 11:30 p.m. and his blood was drawn **[*30]** at 2:30 a.m., if he only had a couple of drinks at 11:30 p.m., it would be unlikely that [he was] below 0.08 at the time of the accident. Given this testimony and the jury's instruction, we cannot determine beyond a reasonable doubt that the error did not contribute to Weems's conviction.

CONCLUSION

Because the warrantless blood draw violated Weems's rights under the *Fourth Amendment* and because we

cannot determine beyond a reasonable doubt that the erroneous admission of the results of the blood draw did not contribute to his conviction, we reverse the judgment of the trial court and remand the cause for a new trial.

Karen Angelini, Justice

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